



### CHAPTER lxiii.

An Act to transfer to and vest in the urban district council of Broadstairs and St. Peter's in the county of Kent the undertaking of the commissioners for the care and management of the pier within the hamlet of Broadstairs and harbour of Broadstairs to provide for the extension of the urban district to authorise the Council to construct street improvements to confer further powers on the Council in regard to their water undertaking and to make further and better provision for the improvement health and local government of the district and for other purposes.

A.D. 1913.

[15th August 1913.]

**W**HEREAS by the Act 32 George III. chapter LXXXVI. intituled "An Act for repairing or rebuilding the Pier adjoining to the Harbour of Broadstairs in the Isle of Thanet in the County of Kent and for the better preserving the said Harbour and for removing and preventing Obstructions Nuisances and Annoyances and regulating the Mooring of Ships and Vessels within the said Harbour" (in this Act referred to as "the Act of 1792") certain commissioners were appointed for the care and management of the pier within the hamlet of Broadstairs in the Isle of Thanet in the county of Kent and harbour of Broadstairs (in this Act referred to as "the commissioners") and for putting the Act of 1792 in execution:

And whereas by the Act of 1792 the pier and harbour of Broadstairs were vested in the commissioners and powers were conferred on them for levying (in respect of the use of the said pier and harbour) the rates prescribed by the said Act:

[Price 5s. 6d.]

A

1



[Ch. lxiii.] *Broadstairs and St. Peter's Urban* [3 & 4 GEO. 5.]  
*District Council Act, 1913.*

A.D. 1913.

And whereas by the Act of 1792 the commissioners were authorised to borrow money upon the credit of the said rates :

And whereas by the Act 45 George III. chapter 102 intituled  
“ An Act for amending an Act passed in the Thirty-second year  
“ of His present Majesty for repairing or rebuilding the Pier  
“ adjoining to the Harbour of Broadstairs in the Isle of Thanet  
“ in the County of Kent ” (in this Act referred to as “ the Act  
of 1805 ”) powers were conferred on the commissioners for levying  
increased rates in substitution for the rates leviabie under the  
Act of 1792 including certain rates in respect of the whole of  
the parish of St. Peter as then existing :

And whereas by the Act of 1805 it was provided that the  
commissioners might borrow further money on the credit of the  
rates by the said Act prescribed but so that the whole sum  
borrowed under the Act of 1792 and the Act of 1805 did not  
at any time exceed the sum of ten thousand pounds :

45 & 46 Viet.  
c. clxviii.

And whereas by the Broadstairs Pier Order 1882 (in this  
Act referred to as “ the Order of 1882 ”) scheduled to and  
confirmed by the Pier and Harbour Orders Confirmation (No. 1)  
Act 1882 powers were conferred on the commissioners to con-  
struct certain works and to borrow an additional sum of twenty-  
five thousand pounds for the purposes of the Order of 1882 and  
contingently on the execution of the works authorised by that  
Order to levy increased rates but the works authorised by the  
Order of 1882 were never commenced and such powers of the  
Order of 1882 have expired :

And whereas the whole of the moneys borrowed by the  
commissioners under the Act of 1792 and the Act of 1805 prior  
to the thirty-first day of March one thousand nine hundred  
and thirteen have been repaid :

And whereas the district of Broadstairs and St. Peter's in  
the Isle of Thanet in the county of Kent is an urban district  
(which includes the pier and harbour of Broadstairs) and is  
under the control of the urban district council of Broadstairs  
and St. Peter's (in this Act referred to as “ the Council ”):

And whereas it is expedient that the undertaking of the  
commissioners should be transferred to and vested in the Council  
and that the commissioners should be dissolved :

And whereas the said urban district originally formed part  
of the parish of St. Peter and was constituted a local govern-  
ment district by an order of the Local Government Board in



the year 1879 and the parish of St. Peter was divided into two civil parishes namely St. Peter Intra and St. Peter Extra and the civil parish of St. Peter Intra is co-extensive with the urban district and the ecclesiastical parish of St. Peter includes both civil parishes and the civil parish of St. Peter Extra is a contributory place in the rural district of the Isle of Thanet: A.D. 1913.

And whereas the limits of water supply of the Council include the urban district and the parish of St. Peter Extra and the pumping station and works of the Council are situate in the parish of St. Peter Extra and the Council supply water within that parish as well as within the said urban district:

And whereas it is expedient that the said urban district should be extended as by this Act provided by including therein a portion of the parish of St. Peter Extra:

And whereas it is expedient to apply to the extension authorised by this Act the recommendations of the Joint Committee of the House of Lords and House of Commons appointed in the year 1911 to inquire into the application of the provisions contained in the Local Government Acts 1888 and 1894 and the Local Government (Scotland) Acts 1889 and 1894 relating to the financial adjustments consequent on the alteration of the boundaries of a local government area or on an alteration in the constitution or status of the governing body of a local government area:

And whereas it is expedient to empower the Council to construct the street improvements referred to in this Act:

And whereas by the Broadstairs and St. Peter's Water and Improvement Act 1901 (in this Act referred to as "the Act of 1901") the Council were authorised to purchase the undertaking of the Broadstairs Waterworks Company and to construct additional waterworks for the supply of the said urban district and the said parish of St. Peter Extra: 1 Edw. 7. c. ccx.

And whereas by the Broadstairs and St. Peter's Urban District Water Act 1907 (in this Act referred to as "the Act of 1907") the Council were authorised to construct additional waterworks and further powers were conferred on the Council in relation to their water undertaking: 7 Edw. 7. c. cxxvi.

And whereas it is expedient that further powers as in this Act contained should be conferred upon the Council with respect to their water undertaking:



[Ch. lxiii.] *Broadstairs and St. Peter's Urban [3 & 4 GEO. 5.]  
District Council Act, 1913.*

A.D. 1913.

And whereas it is expedient to make further provision in regard to streets and buildings in the said urban district and that the powers of the Council in relation to the health local government and improvement of the said urban district be enlarged as by this Act provided:

And whereas it is expedient that better provision should be made with respect to the collection of local rates:

And whereas it is expedient that the other provisions contained in this Act be enacted:

And whereas the following adoptive Acts are in force within the said urban district (namely):—

The Infectious Disease (Prevention) Act 1890;

The Public Health Acts Amendment Act 1890 (Parts II. III. and IV.);

The Private Street Works Act 1892:

And whereas by an order of the Secretary of State for the Home Department dated the third day of October one thousand nine hundred and ten certain sections of Part VII. and the whole of Part VIII. of the Public Health Acts Amendment Act 1907 were declared to be in force within the said urban district:

And whereas by an order of the Local Government Board dated the eleventh day of May one thousand nine hundred and eleven the whole of Part V. and certain sections in Parts II. III. IV. and X. of the Public Health Acts Amendment Act 1907 were declared to be in force within the said urban district subject to certain conditions and adaptations specified in the said order:

And whereas estimates have been prepared by the Council of the cost of and in connection with the purchase of land for and for the construction of the street improvements authorised by Part IV. of this Act and such estimates amount to fifteen thousand pounds:

And whereas the works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:



And whereas in relation to the promotion of the Bill for A.D. 1913.  
 this Act the requirements of the Borough Funds Acts 1872 and  
 1903 have been observed and the consent of the Local Govern-  
 ment Board has been obtained:

And whereas plans and sections showing the lines and levels  
 of the works authorised by this Act and a book of reference con-  
 taining the names of the owners and lessees or reputed owners  
 and lessees and of the occupiers of the lands required or which  
 may be taken for the purposes or under the powers of this Act  
 were duly deposited with the clerk of the peace for the county  
 of Kent and are in this Act respectively referred to as the  
 deposited plans sections and book of reference:

May it therefore please Your Majesty that it may be enacted  
 and be it enacted by the King's most Excellent Majesty by  
 and with the advice and consent of the Lords Spiritual and  
 Temporal and Commons in this present Parliament assembled  
 and by the authority of the same as follows:—

## PART I.

### PRELIMINARY.

1. This Act may be cited as the Broadstairs and St. Peter's Short title.  
 Urban District Council Act 1913.

2. This Act is divided into Parts as follows:—

Division of  
 Act into  
 Parts.

Part I.—Preliminary.

Part II.—Transfer of powers of Pier and Harbour  
 Commissioners.

Part III.—Extension of existing district.

Part IV.—Street improvements and lands.

Part V.—Water.

Part VI.—Seashore and pleasure grounds.

Part VII.—Streets buildings sewers and drains.

Part VIII.—Infectious disease and sanitary provisions.

Part IX.—Local rates.

Part X.—Financial.

Part XI.—Miscellaneous.



[Ch. lxiii.] *Broadstairs and St. Peter's Urban* [3 & 4 Geo. 5.]  
*District Council Act, 1913.*

A.D. 1913.

Incorpora-  
tion of Acts.

3. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely) :—

- (1) The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845):
- (2) The Harbours Docks and Piers Clauses Act 1847 except sections 16 to 19 (unless the Council shall be required by the Board of Trade to provide and maintain a lifeboat and a tide and weather gauge):

Provided that the following expressions used in the said Act of 1847 shall have the following respective meanings (that is to say) :—

The expressions “packet boat” and “Post Office packet” mean respectively a vessel employed by or under the Post Office or the Admiralty for the conveyance under contract of postal packets as defined by the Post Office Act 1908 and the expression “Post Office bag of letters” means a mail bag as defined by the same Act:

Provided also that nothing in the said Act of 1847 or in this Act shall extend to exempt from rates or duties any such vessel as aforesaid if she also conveys passengers or goods for hire.

Interpreta-  
tion.

4. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Acts have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act unless the subject or context otherwise requires —

“The existing district” means the urban district of Broadstairs and St. Peter's in the Isle of Thanet in the county of Kent as it existed immediately prior to the commencement of Part III. of this Act;

“The district” means the existing district as extended and altered by this Act;

“The Council” means the urban district council of the existing district or of the district (as the context may require);



"The commissioners" means the commissioners for the care and management of the pier within the hamlet of Broadstairs in the Isle of Thanet in the county of Kent and harbour of Broadstairs and for putting the Act of 1792 and the Act of 1805 into execution; A.D. 1913.

"The Act of 1792" means the recited Act 32 George III. chapter LXXXVI.;

"The Act of 1805" means the recited Act 45 George III. chapter 102;

"The Order of 1882" means the Broadstairs Pier Order 1882 scheduled to and confirmed by the Pier and Harbour Orders Confirmation (No. 1) Act 1882;

"The Act of 1888" means the Local Government Act 1888;

"The Act of 1894" means the Local Government Act 1894;

"The Act of 1901" means the Broadstairs and St. Peter's Water and Improvement Act 1901;

"The Act of 1907" means the Broadstairs and St. Peter's Urban District Water Act 1907;

"The pier and harbour" means the pier within the hamlet of Broadstairs and the harbour of Broadstairs as defined by the Act of 1792;

"The pier" means the said pier within the hamlet of Broadstairs and "the harbour" means the said harbour of Broadstairs;

"The harbour undertaking" means the harbour and pier and the undertaking of the commissioners transferred by this Act to the Council as the same from time to time and at any time exists;

"The harbour revenue" means and includes any surplus revenue in the hands of the commissioners at the date of transfer and transferred to the Council in pursuance of this Act and all rates tolls dues rents and other sums received by the Council from and in respect of the harbour undertaking;

The expression "prescribed limits" in the Harbours Docks and Piers Clauses Act 1847 incorporated with this Act shall mean and include the limits of the harbour undertaking;

"The Isle of Thanet District" means the rural district of the Isle of Thanet in the county of Kent;



[Ch. lxiii.] *Broadstairs and St. Peter's Urban* [3 & 4 GEO. 5.]  
*District Council Act, 1913.*

A.D. 1913.

“The Isle of Thanet Council” means the rural district council of the Isle of Thanet District;

“The added area” means so much of the Isle of Thanet District as is defined in the section of this Act of which the marginal note is “Extension of existing district and alteration of parishes”;

“The seashore” means and includes the seashore foreshore and all the beach and sands within the district;

“The clerk” “the medical officer” “the surveyor” and “the inspector of nuisances” mean respectively the clerk the medical officer of health the surveyor and the inspector of nuisances of the district and respectively include any person duly authorised to discharge temporarily the duties of those offices;

“The district fund” and “the general district rate” mean respectively the district fund and the general district rate of the district;

“Infectious disease” means any infectious disease to which the Infectious Disease (Notification) Act 1889 for the time being applies within the district;

“Daily penalty” means a penalty for each day on which any offence is continued by a person after conviction;

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Council;

“Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for



the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed; A.D. 1913.

“Revenues of the Council” includes the revenues of the Council from time to time arising from any land undertakings or other property for the time being of the Council and the rates or contributions leviable by or on the order or precept of the Council.

## PART II.

### TRANSFER OF POWERS OF PIER, AND HARBOUR COMMISSIONERS.

5. On and after the first day of April one thousand nine hundred and fourteen (which date is in this Act referred to as “the date of transfer”) the commissioners shall be dissolved and as from that date the undertaking of the commissioners and all property real and personal and things in action belonging to or vested in the commissioners and all their powers rights duties liabilities obligations authorities and jurisdiction shall be transferred to and vested in the Council subject to the duties contracts and liabilities affecting the same and such of the provisions of the Acts of 1792 and 1805 and the Order of 1882 as are set forth in the Third Schedule to this Act shall so far as the same are applicable for the purposes of and not inconsistent with this Act and subject also to the provisions of this Act apply to the Council in the exercise of the powers by this Act transferred to them or conferred upon them as fully and effectually as if the Council had been named in the said Acts and Order instead of the commissioners and as if the clerk had been named therein instead of the clerk of the commissioners: Transfer of powers of commissioners.

Provided that the jurisdiction of the Council under the said Acts and Order shall not extend to the portions of the parish of St. Peter Extra which are amalgamated with the parish of Garlinge by Part III. of this Act nor to any portion of the said parish which may be included in the borough of Margate by any Provisional Order of the Local Government Board confirmed by Parliament in the session of 1913.



[Ch. lxiii.] *Broadstairs and St. Peter's Urban* [3 & 4 GEO. 5.]  
*District Council Act, 1913.*

A.D. 1913. Carrying on  
of undertak-  
ing up to  
date of  
transfer. 6. The commissioners shall maintain and carry on their undertaking until the date of transfer in the same manner as heretofore and the commissioners shall not without the consent of the Council expend any money on capital account between the passing of this Act and the date of transfer.

Actions &c.  
not to abate. 7. Any action arbitration or other proceeding civil or criminal to which at the date of transfer the commissioners were parties shall not abate or be prejudicially affected by reason of the transfer of the commissioners' powers and undertaking but may be continued by or against the Council as the case may be as fully and effectually as the same might have been continued by or against the commissioners.

Contracts  
&c. pre-  
served. 8. All agreements contracts deeds instruments purchases or sales lawfully made or entered into by the commissioners before the date of transfer shall after that date be effectual to all intents in favour of or against the Council as the case may be.

Books &c. to  
be evidence. 9. All books documents and writings which would have been receivable in evidence in respect of any matter for or against the commissioners shall after the date of transfer be admitted as evidence in respect of the same or the like matter for or against the Council as the case may be.

Continuance  
of byelaws. 10. All byelaws and regulations made by the commissioners for the purposes mentioned in and under the powers of the section of the Act of 1805 of which the marginal note is "Commissioners may make byelaws" and in force at the date of transfer shall continue in force until byelaws made by the Council under the section of this Act the marginal note whereof is "Power to make byelaws with respect to pier and harbour" come into operation.

Existing  
officers of  
commis-  
sioners. 11.—(1) The Council shall take into their employment or service Henry Bertram Langham Jethro Pettit and Thomas Henry Bishop the present clerk harbour-master and collector of dues of the commissioners if they or either of them are in the occupation of the said offices at the date of transfer and shall consent to enter the service of the Council and if so consenting they and each of them shall be employed by the Council on the same terms and conditions as nearly as may be as they were employed at the date of transfer.

(2) The said Henry Bertram Langham Jethro Pettit and Thomas Henry Bishop or either of them if at the date of transfer



they respectively shall be in the occupation of their said offices and shall decline to enter the service of the Council shall be deemed to be a person entitled to compensation within the meaning of section 120 of the Act of 1888 and the provisions of that section shall with the necessary modifications and with the substitution of the Local Government Board for the Treasury apply accordingly. A.D. 1913.

(3) Any compensation payable under this section may at the option of the Council be by way of annuity or by payment of a sum in gross.

**12.** The mortgage debt (if any) of the commissioners and the interest thereon shall at the date of transfer continue to be charged on the same tolls rates and revenues as the case may be and in the same manner in all respects as before the date of transfer. Mortgage debt to remain charged as heretofore.

**13.** The Council may repay any sums of money borrowed by the commissioners under the Acts of 1792 and 1805 or either of them at any time after the date of transfer on such terms and conditions as may be agreed between the Council and any mortgagees in respect of sums so borrowed as aforesaid. Provided that until any sums of money borrowed by the commissioners under the Acts of 1792 and 1805 or either of them and all interest due and to become due thereon shall have been repaid the same shall be and remain charged upon the harbour revenue in priority to any moneys borrowed by the Council under the authority of this Act and any interest to become due thereon. As to payment off of mortgage debt.

**14.** Except as aforesaid nothing in this Act shall prejudice or affect any existing mortgage granted by the commissioners under the Acts of 1792 and 1805 so long as the same is undischarged or the rights or remedies of any holder thereof. Saving for existing mortgages of commissioners.

**15.** All persons who immediately before the date of transfer owed any money to the commissioners or to any person on their behalf shall pay the same with all interest (if any) due or accruing upon the same to the Council and all debts and moneys which immediately before the date of transfer were due or recoverable from the commissioners or for the payment of which the commissioners were or but for this Act would be liable shall be recoverable with all interest (if any) due or accruing upon the same from the Council and shall be payable and paid As to payment of debts owing before date of transfer.



[Ch. lxiii.] *Broadstairs and St. Peter's Urban* [3 & 4 GEO. 5.]  
*District Council Act, 1913.*

A.D. 1913. out of the same rates funds or other property which would have been liable for the payment of the same if this Act had not been passed.

Sand &c. not to be removed from harbour without licence of Council.

**16.** Any person who at any time digs or takes away within or from the harbour any ballast shingle sand stones or other things without having first obtained the licence in writing of the Council or who having obtained such licence digs carries away or removes any ballast shingle sand stones or other things from any part of the harbour or in any quantity or manner other than the part quantity or manner permitted by such licence shall for every such offence be liable to a penalty not exceeding five pounds.

Partial repeal of Acts of 1792 and 1805 and Order of 1882.

**17.**—(1) The Act of 1792 the Act of 1805 and the Order of 1882 respectively are hereby repealed as and from the date of transfer save and except the provisions thereof set forth in the Third Schedule to this Act.

(2) The limits of the harbour as described in section XXIV. of the Act of 1792 are indicated on a map deposited at the Board of Trade and signed by an assistant secretary to the Board of Trade.

Council to maintain watch-tower.

**18.** The Council shall maintain and repair the watch-tower or look-out house with all necessary fittings and equipment in connection therewith which has been provided by the commissioners on the pier or shall establish and maintain a similar watch-tower or look-out house in some other suitable position within the limits of the harbour.

Power to dredge.

**19.** The Council may from time to time dredge scour deepen and cleanse the harbour and the approaches thereto and the bed and foreshore thereof :

Provided that no materials excavated or dredged under the provisions of this section shall be deposited below high-water mark otherwise than in such position and under such restrictions as may be fixed by the Board of Trade.

Power to Council to appoint officers &c.

**20.** The Council may appoint and pay officers and servants for the purpose of assisting the Council in carrying out the powers transferred to them by this Part of this Act.

Power to let parts of harbour undertaking &c.

**21.** The Council may let for hire or lease for any term not exceeding three years any part of the harbour undertaking to any body or persons upon such terms (pecuniary or otherwise)



and under such restrictions and conditions as they think fit and may make reasonable charges with regard to any use of any part of the harbour undertaking where the charges for such use are not prescribed by the Act of 1792 and the Act of 1805. A.D. 1913.

**22.** As from the date of transfer the table or schedule of rates referred to in the Act of 1805 and set forth in the Third Schedule to this Act shall be read and construed subject to the following modifications and amendments of the weights measures and denominations referred to therein (that is to say):— Amendment of table or schedule of rates referred to in Act of 1805.

- (A) The expression "barrel" shall be deemed to mean thirty-six gallons where that expression is used in relation to liquids and shall be deemed to mean one hundred-weight where that expression is used in relation to other goods or merchandise :
- (B) The expression "firkin" shall be deemed to mean nine gallons where that expression is used in relation to liquids and shall be deemed to mean one bushel where that expression is used in relation to other goods or merchandise :
- (C) The expression "pipe" shall be deemed to mean one hundred and eight gallons :
- (D) The expression "puncheon" shall be deemed to mean seventy-two gallons :
- (E) "Ton" shall be substituted for "hogshead" "chaldron" and "load" where those expressions are used in the said table or schedule :
- (F) The expressions "kit" "fathom" "pocket" and "bag" shall be deemed to mean one hundredweight :
- (G) The expression "cord of wood" shall be deemed to mean one hundred and twenty-eight cubic feet.

**23.** In addition to the powers of making byelaws contained in any other enactment enabling the Council to make byelaws they may from time to time subject to the provisions of this Act make such byelaws as they think fit for all or any of the following purposes (that is to say):— Power to make bye-laws with respect to pier and harbour.

For regulating the use of and the moving of carriages waggons and trucks along the harbour and pier and the works and lands connected therewith :



[Ch. lxiii.] *Broadstairs and St Peter's Urban* [3 & 4 GEO. 5.]  
*District Council Act, 1913.*

A.D. 1913.

For regulating the conduct of the owners masters and crews of vessels and for requiring such vessels to keep the advertised times of sailing and for regulating the taking on board transshipping landing or putting out of passengers :

For regulating the using of the buoys of the Council :

For preventing nuisance or annoyance by smoke and noise caused by vessels and the machinery and appliances thereof :

For regulating the use of warehouses sheds depôts quays trucks barges machinery plant and appliances and labour provided by the Council :

For berthing and removing vessels lying in any part of the harbour and regulating the conduct and behaviour of boatmen lumpers jobbers stevedores and others resorting to the harbour or pier or works or lands connected therewith :

For regulating the ballasting of vessels within the harbour and the order and manner in which they shall be supplied with ballast and the discharging and removal or disposal of ballast :

For preventing the exhibiting or placing in or on the pier or harbour or works or lands connected therewith of any goods for sale other than such goods as the Council from time to time think fit to be permitted to be sold there and other than perishable articles landed on the pier or works or lands connected therewith and sold within forty-eight hours of their being landed :

And such byelaws (except so far as they relate solely to the Council or their officers or servants) shall be subject to the provisions with respect to byelaws of the Harbours Docks and Piers Clauses Act 1847 except section 85 of that Act but no such byelaws shall have any force or effect unless and until the same be confirmed by the Board of Trade.

Any person who offends against any byelaw shall be liable for every offence to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings for every day such offence shall continue after conviction therefor and such penalties shall be in addition to any damages which may be recoverable by the Council or by any other person or company



for any loss or injury to them or him or to their or his property consequent on such offence. A.D. 1913.

**24.**—(1) There shall extend and apply to any part of the harbour undertaking which may not be required for harbour purposes and the Council may exercise in relation thereto the powers of the following sections of the Act of 1901 (that is to say):—

Use of part of harbour undertaking as pleasure grounds.

Section 62 (Power to provide and let chairs &c.);

Section 139 (Power to appoint officers).

(2) Section 124 (General provisions as to byelaws) of the Act of 1901 shall apply to any byelaws made by the Council under the provisions of the said section 62.

**25.** All costs and expenses of the Council of and in connection with the carrying into execution of the provisions of this Part of this Act (save and except such as are paid out of borrowed moneys) shall be paid out of the harbour revenue and in the event of the harbour revenue being insufficient for the purpose of meeting such expenses the deficiency may be made good out of the district fund and general district rate and any sum so paid out of the district fund or general district rate shall be a debt due from the harbour undertaking to the district fund and shall be repaid to that fund out of the harbour revenue as by this Act provided.

Expenses of carrying out this Part of Act.

### PART III.

#### EXTENSION OF EXISTING DISTRICT.

**26.** This Part of this Act except so far as is otherwise herein expressly provided and so far as there may be anything in the subject matter or context inconsistent therewith shall come into operation on the first day of April one thousand nine hundred and fourteen and that date is in this Act referred to as "the commencement of this Part of this Act":

Commencement of this Part of Act.

Provided that for the purpose of the preparation of any contribution order and for all purposes preliminary or relating to any election for the areas affected by this Part of this Act this Act shall so far as may be necessary be deemed to have taken effect from the date of the Royal Assent to this Act.



[Ch. lxiii.] *Broadstairs and St. Peter's Urban* [3 & 4 GEO. 5.]  
*District Council Act, 1913.*

A.D. 1913.

Extension  
of existing  
district and  
alteration of  
parishes.

**27.**—(1) The boundary of the existing district is hereby extended so as to include (and the district shall accordingly include in addition to the existing district) so much of the parish of St. Peter Extra in the Isle of Thanet District as is coloured pink on the map referred to in the section of this Act of which the marginal note is “Deposit of map of extended district” (in this Act referred to as “the added area”) and the added area shall for all purposes form part of the district and all the rights privileges benefits and advantages enjoyed by the ratepayers or inhabitants of the existing district are hereby extended to and may be enjoyed by the inhabitants of the added area.

(2) The added area shall cease to form part of the Isle of Thanet District and shall form part of the existing parish of St. Peter Intra and such parish shall be called the parish of St. Peter.

(3) The excluded portions of the parish of St. Peter Extra which lie—

(A) To the west of the Margate Branch of the South Eastern and Chatham Railway; and

(B) To the north-west of the road which leads in a south-westerly direction from the Star Inn to the said Margate Branch of the South Eastern and Chatham Railway;

shall be amalgamated with the parish of Garlinge.

Deposit of  
map of ex-  
tended dis-  
trict.

**28.** A map of the district as extended by this Act has been signed in triplicate by the Lord Clinton the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred (in this Act called “the district map”) one of which has been deposited in the Parliament Office of the House of Lords one in the Private Bill Office of the House of Commons and one with the clerk at his office and copies thereof certified by the clerk shall be sent as soon as may be to the Local Government Board to the Board of Trade to the Commissioners of Customs and Excise to the Board of Agriculture and Fisheries to the Inland Revenue Department to the Registrar-General to the clerk to the county council of Kent and to the clerk to the Isle of Thanet Council.

Copies of  
map to be  
evidence.

**29.** Copies of or extracts from the district map deposited with the clerk certified by him to be true shall be received in all courts of justice and elsewhere as *prima facie* evidence of the contents of such map so far as it relates to the boundary



of the district and such map shall at all reasonable times be open to inspection by any person liable to any rate leviable within the district and any such person shall be entitled to a copy of or extract from such map certified by the clerk to be true on payment of a reasonable fee to be demanded by the Council. All fees so received shall be carried to the credit of the district fund. A.D. 1913.

**30.** Subject as regards any future alterations of wards to the provisions of the Act of 1888 with respect to the alteration of wards the following provisions shall have effect:— Division of district into wards.

(1) For the purpose of the election of councillors of the district the district shall be divided into four wards which shall be named respectively the Central Ward the Pierremont Ward the St. Peter's Ward and the Kingsgate Ward:

(2) Each of the said wards shall comprise that portion of the district which is separately indicated by a distinctive colour and distinguished by the name of the ward on the map marked "Map of the wards of the "urban district of Broadstairs and St. Peter's as "extended 1913" and signed in triplicate by the Lord Clinton the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred one of which has been deposited in the Parliament Office of the House of Lords one in the Private Bill Office of the House of Commons and one with the clerk at his office. Copies of such map certified by the clerk shall be sent as soon as may be to the Local Government Board to the clerk of the Kent County Council to the Registrar-General and to the Board of Agriculture and Fisheries:

(3) Three councillors shall be assigned to each of the said wards.

**31.** For the purposes of the election of councillors for the district in the year one thousand nine hundred and fourteen in pursuance of the Act of 1894 and the rules framed under that Act by the Local Government Board the following provisions shall apply:— Provisions for election of councillors in 1914.

(1) Twelve councillors of the district shall be elected on the sixth day of April one thousand nine hundred and fourteen or such other day not being earlier than



[Ch. lxiii.] *Broadstairs and St. Peter's Urban* [3 & 4 GEO 5.]  
*District Council Act, 1913.*

A.D. 1913.

the fourth day of April one thousand nine hundred and fourteen nor later than the eighth day of April one thousand nine hundred and fourteen as may for special reasons be fixed by the Kent County Council:

(2) The councillors so elected shall enter upon office on the sixteenth day of April one thousand nine hundred and fourteen:

(3) Notwithstanding anything in the Act of 1894 or the rules framed under that Act by the Local Government Board to the contrary all the councillors of the existing district who shall be in office on the fifteenth day of April one thousand nine hundred and fourteen shall go out of office on that date and all the said councillors shall if otherwise qualified be eligible for election as councillors of the district.

Retirement  
of councillors  
elected in  
1914.

**32.**—(1) The councillors elected for the district in the year one thousand nine hundred and fourteen shall retire as follows:—

(a) The councillor for each ward who is elected by the smallest number of votes on the fifteenth day of April one thousand nine hundred and fifteen:

(b) The councillor for each ward who is elected by the largest number of votes on the fifteenth day of April one thousand nine hundred and seventeen:

(c) The other councillor for each ward on the fifteenth day of April one thousand nine hundred and sixteen.

(2) Provided that if for any reason it is doubtful which of the councillors ought to retire on the dates specified in this section the Council shall at their annual meeting in the year one thousand nine hundred and fourteen by a majority of votes or in the case of an equality of votes on the casting vote of the chairman determine which of the councillors shall go out of office on the dates so specified respectively.

(3) In each of the years one thousand nine hundred and fifteen one thousand nine hundred and sixteen and in every subsequent year one member of the Council shall be elected for each of the four wards.

Act of 1894  
and election  
order to  
apply to all  
elections &c.

**33.** Subject to the provisions of this Act all elections vacancies of office and rotation of the councillors shall be governed and regulated by the Act of 1894 and the rules framed under that Act by the Local Government Board.



**34.**—(1) For the purposes of the registers of county and parochial electors and of jury and other lists and all matters in relation thereto the added area shall be deemed to have always been part of the district and anything required to be done in connection with the purposes aforesaid before the date of the passing of this Act may in so far as the same relates to the added area be done as soon as practicable after such date and if so done shall have full force and effect.

A.D. 1913.  
Registers  
and lists of  
electors &c.

(2) In making out revising or otherwise dealing with the said registers and lists effect shall be given so far the circumstances require or allow to the provisions of this Act.

(3) Where any difficulty in giving effect to the provisions of this Part of this Act can be obviated or removed by any alteration in or re-arrangement of or any other action affecting the said registers or lists such alteration re-arrangement or action so far as the same may be necessary for giving effect to the said provisions shall be made or taken by the clerk to the county council of Kent and the overseers of the poor shall render such assistance as may be requisite for the purpose of such alteration re-arrangement or action by the clerk to the county council and such alteration re-arrangement or action shall be deemed to be authorised by the provisions in force with respect to such registers and lists.

(4) Where in the opinion of the Local Government Board the circumstances so require the Local Government Board may make such order as appears to them to be necessary to give effect to the provisions of this Act and may vary so far as is requisite the provisions in force with regard to such registers and lists.

(5) For the purposes of the said registers and lists the parishes affected by this Act shall be deemed to continue unaltered until the new registers and lists come into operation.

**35.** All property vested in the Council at the commencement of this Part of this Act for the benefit of the existing district shall be held by the Council for the benefit of the district and the Council shall hold enjoy and exercise for the benefit of the district all the powers which at the date aforesaid are exerciseable by or vested in the Council for the benefit of the existing district and all liabilities which on the date aforesaid attached to the Council in respect of the existing district

Council pro-  
perty &c.



[Ch. lxiii.] *Broadstairs and St. Peter's Urban* [3 & 4 GEO. 5.]  
*District Council Act, 1913.*

A.D. 1913. shall from and after that date attach to them in respect of the district.

Mortgage  
debts of  
Council.

**36.** So much of any sums borrowed by the Council as shall at the commencement of this Part of this Act be owing and charged on the district fund and general district rate of the existing district shall be charged upon the district fund and general district rate of the district and all such sums shall together with the interest to accrue due thereon be repaid by the Council within the respective periods for which the loans in respect of which the said sums are owing were originally sanctioned or within which the same are otherwise required to be repaid or are made repayable.

Acts and  
Orders.

**37.** The provisions of any general Act (adoptive or otherwise) and of any local Acts and of any Provisional Orders confirmed by Parliament and of any orders made by the Local Government Board or other Government department affecting the existing district or the Council as the same respectively are in force within the existing district at the commencement of this Part of this Act shall extend and apply to the district and any reference therein to the existing district and the Council shall be deemed to refer to the district and the Council.

Byelaws.

**38.**—(1) All byelaws and regulations and every list of tolls and table of fees and payments and scale of charges made by the Council which at the commencement of this Part of this Act are in force in the existing district shall thenceforth apply to the district until or except in so far as any such byelaws or regulations or list of tolls or table of fees and payments or scale of charges may be altered or repealed.

(2) All byelaws and regulations made by the Isle of Thanet Council and in force immediately before the commencement of this Part of this Act in the added area shall on that date cease to be in force except as regards any work commenced before that date or any work for which plans shall have been approved before that date or shall have been sent to the surveyor or clerk of the Isle of Thanet Council one month at least before that date and shall not have been disapproved by that council and as regards any such work as aforesaid the byelaws in force immediately before the commencement of this Part of this Act shall continue to apply until the completion of such work in like manner and with the like effect as if such byelaws and



regulations had been made by the Council and as if the Council the district and the clerk surveyor medical officer or other officer of the district were referred to therein instead of the Isle of Thanet Council the Isle of Thanet District and the clerk surveyor medical officer or other officer of the Isle of Thanet District respectively Provided that any proceedings which might have been taken by the Isle of Thanet Council against any person for any offence committed before the commencement of this Part of this Act against any byelaws then in force may be taken by the Council as if those byelaws and regulations had remained in force and the Council had been substituted therein for the Isle of Thanet Council. A.D. 1913.

**39.** The clerk and all other officers and servants of the Council of the existing district who hold office at the commencement of this Part of this Act shall continue to be the clerk and officers and servants of the Council of the district and shall hold their offices by the same tenure as at that date. Clerk and other officers continued.

**40.—(1)** Every officer and servant who by virtue of this Part of this Act or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by abolition of office or by diminution or loss of fees or salary and for whose compensation no other provision is made by any enactment for the time being in force and applicable to his case shall be entitled to have compensation paid to him by the Council for such pecuniary loss and in determining such compensation regard shall be had to the conditions and other circumstances required by subsection (1) of section 120 of the Act of 1888 to be had in regard in cases of compensation under that section and the compensation shall not exceed the limit therein mentioned and shall be paid out of the district fund and general district rate and the provisions of subsections (2) to (7) of section 120 of the Act of 1888 shall apply with the necessary modifications and with the substitution of the Local Government Board for the Treasury Provided that the non-acceptance of any office shall not be a bar to the right of any officer to compensation. Compensation to existing officers.

(2) For the purposes of the last preceding subsection any such officer or servant whose services are dispensed with by the Council or by any other authority because his services are not required and not on the ground of misconduct or whose salary is reduced on the ground that his duties have been diminished in consequence hereof in either case within five years from the



[Ch. lxiii.] *Broadstairs and St. Peter's Urban* [3 & 4 GEO. 5.]  
*District Council Act, 1913.*

A.D. 1913. commencement of this Part of this Act shall be deemed to have suffered a direct pecuniary loss in consequence of this Act.

Property of  
Isle of  
Thanet  
Council.

41. Subject to the provisions of this Act—

- (1) All property and liabilities which immediately before the commencement of this Part of this Act are vested in or attach to the Isle of Thanet Council in relation exclusively to any part of the added area shall by virtue of this Act be transferred to vest in and attach to the Council as urban district council and any property and liabilities vested in or attaching to the Isle of Thanet Council in relation to any part of the added area conjointly with any other area shall be a matter for adjustment under section 62 of the Act of 1888 and the said section as modified by this Act shall apply as if this Part of this Act were an order made in pursuance of the Act of 1888:
- (2) The Isle of Thanet Council shall cease to exercise any powers or have any duties within any part of the added area:
- (3) All arrears of rates made for the purposes of the Public Health Acts or for highway expenses or for the purposes of the Lighting and Watching Act 1833 which at the commencement of this Part of this Act are due or owing in respect of hereditaments in the added area may be collected and recovered as if this Act had not been passed and when collected and recovered shall be applied towards the discharge of any precept of the Isle of Thanet Council which at that date shall be in force and not satisfied or in the case of rates made in the added area for the purposes of the Lighting and Watching Act 1833 towards defraying any expenses incurred by the parish council of St. Peter Extra under the last-mentioned Act and the balances if any shall be paid to the Council:
- (4) Any balance and any other moneys in the hands of the overseers of the parish of St. Peter Extra at the commencement of this Part of this Act shall be devoted to the purposes for which and paid to the authorities for whom the same were respectively raised:



- (5) Any councils and other authorities affected by this Part of this Act may agree generally for an equitable adjustment of all financial relations and the settlement of all questions affecting such councils and authorities arising out of or in consequence of the extension of the existing district by this Part of this Act effected and in default of agreement the matter or matters not so agreed shall form the subject of adjustment under section 62 of the Act of 1888 and the said section as modified by this Act shall apply as if this Part of this Act were an order made in pursuance of the Act of 1888. A.D. 1913.

42. On any adjustment made otherwise than by agreement for the purposes of this Part of this Act under section 62 of the Act of 1888 as modified or adapted by this Act provision shall be made for the payment to any council or other authority affected by this Act of such sum as seems equitable in accordance with the following rules in respect of any increase of burden which will properly be thrown on the ratepayers of the area of that council or other authority in meeting the cost incurred by that council or other authority in the execution of any of their powers and duties as a consequence of the alteration of boundaries effected by this Act or other change in relation to which the adjustment takes place (that is to say):— Provisions  
for adjust-  
ments.

- (1) Regard shall be had to—

(a) The difference between the burden on the ratepayers which will properly be incurred by the council or other authority affected by this Act in meeting the cost of executing any of their powers and duties and the burden on the ratepayers which would properly have been incurred by that council or other authority in meeting such cost had no alteration of boundaries or other change taken place;

(b) The length of time during which the increase of burden may be expected to continue:

- (2) The sum payable by or to any council or other authority affected by this Act in respect of the increase of burden shall not exceed or if payable by instalments or by way of annuity the capitalised value of the instalments or annuity shall not exceed the average annual increase of burden multiplied by fifteen.



[Ch. lxiii.] *Broadstairs and St. Peter's Urban* [3 & 4 GEO. 5.]  
*District Council Act, 1913.*

A.D. 1913.

Saving for  
contracts &c.

**43.** Anything duly done or suffered and all contracts deeds bonds agreements and other instruments (subsisting at the commencement of this Part of this Act) entered into or made by the Isle of Thanet Council or their predecessors in relation exclusively to any part of the added area shall be of as full force and effect against or in favour of the Council and may be continued and enforced as fully and effectually as if instead of the Isle of Thanet Council or their predecessors the Council had done or suffered the same or been a party thereto.

Actions &c.  
not to abate.

**44.** If at the commencement of this Part of this Act any action or proceeding or any cause of action or proceeding is pending or existing by or against the Isle of Thanet Council in relation exclusively to any part of the added area the same shall not be in any wise prejudicially affected by reason of the passing of this Part of this Act but may be continued prosecuted and enforced by or against the Council.

Transfer of  
powers of  
parish  
council of  
St. Peter  
Extra.

**45.—(1)** Any powers and duties transferred by the Act of 1894 to the parish council or parish meeting of the parish of St. Peter Extra shall so far as regards the added area be vested in exerciseable by and imposed on the persons or authorities in whom they would be vested or by whom they would be exerciseable or on whom they would be imposed if the added area had been included in an urban district on the appointed day within the meaning of the Act of 1894 and any property or liabilities held or incurred so far as regards the added area by virtue of or for the purposes of the said powers or duties shall pass to and vest in or attach to the persons and authorities aforesaid Any property or liabilities of the said parish council held or incurred so far as regards the added area otherwise than by virtue of or for the purposes of the said powers or duties shall be transferred to and vest in or attach to the Council and the parish council of the parish of St. Peter Extra shall cease to exist.

(2) The accounts of the parish council of the parish of St. Peter Extra and of their committees and officers shall be made up to the commencement of this Part of this Act and shall be audited by the district auditor in like manner and with the like incidents and consequences as if this Act had not been passed :

Provided that the audit may be held as soon as practicable after the commencement of this Part of this Act any statutory



provision or regulation as to the time of holding the audit to the contrary notwithstanding and that any sum certified by the district auditor at the audit to be due from any person shall be paid to the treasurer of the Council and shall be a matter for adjustment under section 62 of the Act of 1888. A.D. 1913.

**46.** The total amount in the pound of the general district rate to be levied by the Council in any one year in respect of any hereditament in the added area shall not exceed the following respective amounts (that is to say):— Differential rating.

(a) During the period of five years from and after the commencement of this Part of this Act the amount of two shillings ;

(b) During a period of five years from and after the first day of April one thousand nine hundred and nineteen the amount of two shillings and sixpence ; and

(c) During a period of five years from and after the first day of April one thousand nine hundred and twenty-four the amount of three shillings.

**47.** Nothing in this Act shall be deemed to alter the boundaries of any parliamentary district as existing at the passing of this Act or shall affect the ecclesiastical divisions of any parish or shall prejudice vary or affect any right interest or jurisdiction in or over any charitable endowment which now is applicable for the benefit of either of the existing parishes affected by this Act. Saving for parliamentary divisions ecclesiastical divisions and charities.

**48.** Until new valuation lists are in force— Valuation lists.

(1) The portion of the valuation list of the existing parish of St. Peter Extra which relates to hereditaments in the added area shall be deemed to form part of the valuation list of the parish of St. Peter Intra :

(2) The portion of the valuation list of the existing parish of St. Peter Extra which relates to hereditaments in the portions of the said parish which are amalgamated by this Act with the parish of Garlinge shall be deemed to form part of the valuation list of the parish of Garlinge.

**49.—**(1) Subject to any future revision thereof the basis or standard of the county rate shall be deemed to be altered by County rate basis.



[Ch. lxiii.] *Broadstairs and St. Peter's Urban* [3 & 4 GEO. 5.]  
*District Council Act, 1913.*

A.D. 1913. — the omission therefrom of the reference to the total annual value of the property in the parish of St. Peter Extra by the addition to the amount appearing therein as the total annual value of the property in the existing parish of St. Peter Intra of such a sum as will represent the annual value of the property in the added area and by the addition to the amount appearing therein as the total annual value of the property in the existing parish of Garlinge of such a sum as will represent the annual value of the property in the portions of the parish of St. Peter Extra which are included by this Act in the parish of Garlinge.

(2) For the purposes of this section the annual value of the property in the part of the parish of St. Peter Extra which is included by this Act in the parish of St. Peter Intra or in the parish of Garlinge shall be the amount which bears the same relation to the total annual value of the existing parish of St. Peter Extra as the assessable value of the property in the included part of the existing parish bears to the total assessable value of property in the existing parish and the total annual value of the existing parish shall be the amount appearing as such in the basis or standard of the county rate.

(3) For the purposes of this section assessable value means one half of the rateable value according to the valuation list for the time being in force of the agricultural land together with the rateable value according to that list of the buildings and other hereditaments not being agricultural land in the existing parish of St. Peter Extra or in the portions included in the parish of Garlinge or in the added area as the case may require.

Status and  
irremov-  
ability of  
paupers.

**50.** For any purposes connected with the settlement and removal of the poor in relation to cases affected by this Act the following provisions shall have effect (that is to say):—

(1) Every person who on the commencement of this Part of this Act has acquired or is in the course of acquiring a settlement in the existing parish of St. Peter Intra or in the existing parish of St. Peter Extra by reason of any residence completed or in the course of completion or of any act or thing done or in the course of being done or of any status condition right or privilege acquired or created or in the course of acquisition or creation—



(i) In the existing parish of St. Peter Intra; or A.D. 1913.

(ii) In the added area; or

(iii) In those portions of the existing parish of St. Peter Extra which by virtue of this Act will form part of the parish of Garlinge

shall be deemed to have acquired or to be in the course of acquiring in the first and second cases a settlement in the parish of St. Peter Intra and in the third case a settlement in the parish of Garlinge and in each case as if the existing parish or the specified part of the existing parish or the added area were and had always been the parish or a part of the parish in which by virtue of this section the person shall be deemed to have acquired or to be in course of acquiring a settlement:

(2) Every person who at the commencement of this Part of this Act has acquired or is in the course of acquiring a status of irremovability from the Isle of Thanet Union by reason of residence—

(i) In the existing parish of St. Peter Intra; or

(ii) In the added area; or

(iii) In those portions of the existing parish of St. Peter Extra which by virtue of this Act will form part of the parish of Garlinge

shall be deemed to have acquired or to be in the course of acquiring the like status by reason of residence in the first and second cases in the parish of St. Peter Intra and in the third case in the parish of Garlinge.

**51.** Notwithstanding the alteration effected in the areas of parishes by this Act all precepts contributions orders or rates made before the commencement of this Part of this Act shall be as valid in law and may be enforced collected and recovered as if this Act had not been passed. Saving for contribution orders and precepts.

**52.** All arrears of rates made by the overseers of the poor of the parish of St. Peter Extra and due or owing at the commencement of this Part of this Act in respect of hereditaments in any area affected by this Part of this Act shall be collected and recovered by the overseers of the poor of the Arrears of rates.



[Ch. lxiii.] *Broadstairs and St. Peter's Urban* [3 & 4 GEO. 5.]  
*District Council Act, 1913.*

A.D. 1913. — parish in which the hereditament will by virtue of this Act be situate.

Power to  
Kent County  
Council to  
amend this  
Part of Act.

**53.** The Kent County Council shall have the like power of amending this Part of this Act as if this Part of this Act had been an order of the Kent County Council made under the Act of 1888 for the alteration of the boundary of an urban district.

PART IV.

STREET IMPROVEMENTS AND LANDS.

Power to  
construct  
street im-  
provements.

**54.** Subject to the provisions of this Act the Council may make and maintain in the lines and according to the levels shown on the deposited plans and sections the street improvements hereinafter described together with all necessary works approaches embankments retaining walls and conveniences connected therewith or incidental thereto.

The street improvements hereinbefore referred to and authorised by this Part of this Act are as follows:

Work No. 1 A widening and improvement of High Street Broadstairs on the south side thereof between Nuckell's Place and Charlotte Street:

Work No. 2 A widening and improvement of High Street Broadstairs on the south side thereof between Raglan Place and the back entrance to the Crown Inn:

Work No. 3 A widening and improvement of High Street Broadstairs on the south side thereof between the premises known as 29 High Street and Belvedere Road:

Work No. 4 A widening and improvement at the corner of Charlotte Street and York Street on the western side of Charlotte Street and on the north-western side of York Street between No. 4 Charlotte Street and the premises known as "Chandos House" York Street:

Work No. 5 A widening and improvement of Nelson Place Crow Hill and Stone Road on the east side thereof between Rectory Road and the south side of the premises known as "Woodstock" Stone Road:

Work No. 6 A widening and improvement of High Street St. Peter's on the north-west side thereof between Ranelagh Grove and the premises known as "Thurso" High Street.



**55.** Subject to the provisions of this Act and within the limits of deviation shown on the deposited plans the Council in connection with the street improvements authorised by this Part of this Act and for the purposes thereof may make junctions and communications with any existing or authorised streets which may be intersected or interfered with by or be contiguous to the street improvements or any of them and may make diversions widenings or alterations of the lines or levels of any existing or authorised streets or street works for the purpose of connecting the same with the street improvements or any of them or of crossing under or over the same or otherwise and may alter divert or stop up all or any part of any drain sewer channel or gas or water main or pipe wire or apparatus within the said limits the Council providing a proper substitute before interrupting the flow of sewage in any drain or sewer or of any gas or water in any main or pipe or of electricity or telephonic communication in any wire or apparatus and making compensation for any damage done by them in the execution of the powers of this section :

A.D. 1913.  
Subsidiary  
works.

Provided that the Council shall not alter divert or otherwise interfere with any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General except under and subject to the provisions of the Telegraph Act 1878.

**56.** Subject to the provisions of this Act the Council may enter on take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as they may require for the construction of the works authorised by this Part of this Act or for the purpose of providing space for the erection of buildings adjoining or near to such works or for other the purposes of this Part of this Act.

Power to  
take lands.

**57.** The powers of the Council for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Period for  
compulsory  
purchase of  
lands.

**58.** If there be any omission mis-statement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Council after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices acting for the county of Kent for the correction thereof and if it appear to the justices that the omission mis-statement or wrong description arose from mistake they shall certify the same accordingly and they

Correction  
of errors in  
deposited  
plans and  
book of  
reference.



[Ch. lxiii.] *Broadstairs and St. Peter's Urban* [3 & 4 GEO. 5.]  
*District Council Act, 1913.*

A.D. 1913. shall in their certificate state the particulars of the omission and in what respect any such matter is mis-stated or wrongly described and such certificate shall be deposited with the clerk of the peace for the county of Kent and a duplicate thereof shall also be deposited with the clerk and such certificate and duplicate respectively shall be kept by such clerk of the peace and clerk respectively with the other documents to which the same relate and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Council to take the lands and execute the works in accordance with such certificate.

Owners may  
be required  
to sell parts  
only of cer-  
tain lands and  
buildings.

**59.** And whereas in the construction of the works by this Part of this Act authorised or otherwise in the exercise by the Council of the powers of this Part of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Council and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect:—

- (1) The owner of and persons interested in any of the properties whereof the whole or part is described in the First Schedule to this Act and whereof a portion only is required for the purposes of the Council or each or any of them are hereinafter in this section included in the term "the owner" and the said properties are hereinafter referred to as "the scheduled properties":
- (2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Council that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Council such portion only without the Council being obliged or compellable to purchase the whole the Council paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise:
- (3) If within such twenty-one days the owner shall by notice in writing to the Council allege that such portion cannot be so severed the jury arbitrators or



other authority to whom the question of disputed compensation shall be submitted (hereinafter referred to as "the tribunal") shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled properties specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Council have compulsory powers of purchase) can be so severed : A.D. 1913.

- (4) If the tribunal determine that the portion of the scheduled properties specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Council the portion which the tribunal shall have determined to be so severable without the Council being obliged or compellable to purchase the whole the Council paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal :
- (5) If the tribunal determine that the portion of the scheduled properties specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the determination of any matters under this section shall be borne and paid by the owner :
- (6) If the tribunal determine that the portion of the scheduled properties specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Council may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice :



[Ch. lxiii.] *Broadstairs and St. Peter's Urban* [3 & 4 GEO. 5.]  
*District Council Act, 1913.*

A.D. 1913.

(7) If the tribunal determine that the portion of the scheduled properties specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Council in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 (No party to be required to sell part of a house) of the Lands Clauses Consolidation Act 1845.

The provisions of this section shall be stated in or endorsed upon every notice given thereunder to sell and convey any premises.

Provisions as to compensation.

**60.** In determining any question of disputed purchase money or compensation payable in respect of lands taken in pursuance of this Act the tribunal shall not award any sum of money for or in respect of any improvement alteration or building made or erected or for or in respect of any interest in the land created after the first day of January one thousand nine hundred and thirteen if in the opinion of the tribunal the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made erected or created with a view to obtaining or increasing compensation under this Act.

Costs of arbitration in certain cases.

**61.—**(1) The tribunal to whom any question of disputed purchase money or compensation under this Act is referred shall if so required by the Council award and declare whether a statement in writing of the amount of compensation claimed has been delivered to the Council by the claimant giving sufficient particulars and in sufficient time to enable the Council to make a proper offer and if the tribunal shall be of opinion that no such statement giving sufficient particulars and in sufficient time



shall have been delivered and that the Council had been prejudiced thereby the tribunal shall have power to decide whether the claimant's costs or any part thereof shall be borne by the claimant. A.D. 1913.

(2) Provided that it shall be lawful for any judge of the High Court to permit any claimant after seven days' notice to the Council to amend the statement in writing of the claim delivered by him to the Council in case of discovery of any error or mistake therein or for any other reasonable cause such error mistake or cause to be established to the satisfaction of the judge after hearing the Council if they object to the amendment and such amendment shall be subject to such terms enabling the Council to investigate the amended claim and to make an offer de novo and as to postponing the hearing of the claim and as to costs of the inquiry and otherwise as to such judge may seem just and proper under all the circumstances of the case.

(3) Provided also that this section shall be applicable only in cases where the notice to treat under the Lands Clauses Consolidation Act 1845 either contained or was endorsed with a notice to the effect of this section.

**62.** The Council in addition to any other lands acquired by them in pursuance of this Act may by agreement purchase take on lease acquire and hold further lands for the purposes of this Part of this Act but the quantity of lands held by the Council in pursuance of this section shall not at any time exceed five acres Provided that the Council shall not create or permit the creation or continuance of any nuisance on any such lands. Power to purchase additional lands by agreement.

**63.** Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Council any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively. Persons under disability may grant easements &c.

**64.** Notwithstanding anything in the Lands Clauses Acts or in any other Act or Acts to the contrary the Council may retain hold and use for such time as they may think fit or may Power to retain sell &c. lands.



[Ch. lxiii.] *Broadstairs and St. Peter's Urban* [3 & 4 GEO. 5.]  
*District Council Act, 1913.*

A.D. 1913. — sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and in case of sale either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest therein acquired by them under this Act and may sell exchange or dispose of any rents reserved on the sale lease exchange or disposition of such lands or interests therein and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange.

Proceeds of  
sale of sur-  
plus lands.

**65.** So long as any lands remain to be acquired by the Council under the authority of this Act they may so far as they consider necessary apply any capital moneys received by them on resale or exchange or by leasing in pursuance of the powers of this Act in the purchase of lands so remaining to be acquired but as to capital moneys so received and not so applied the Council shall apply the same in or towards the extinguishment of any loan raised by them under the powers of this Act and such application shall be in addition to and not in substitution for any other mode of extinguishment provided by this Act except to such extent and upon such terms as may be approved by the Local Government Board Provided that—

- (1) The amount to be applied in the purchase of lands under this section shall not exceed the amount for the time being unexhausted of the borrowing powers conferred by this Act for the purpose of such purchase:
- (2) The borrowing powers conferred by this Act for the purpose of such purchase shall be reduced to the extent of the amount applied in the purchase of lands under the provisions of this section.

Limits of  
deviation.

**66.** In the construction of the works authorised by this Part of this Act the Council may deviate laterally to any extent not exceeding the limits of lateral deviation shown on the deposited plans and they may also deviate vertically from the levels shown on the deposited sections to any extent not exceeding four feet upwards or downwards.

Temporary  
stoppage of  
streets.

**67.**—(1) The Council during the execution and for the purposes of any works authorised by this Act may break up and also temporarily stop up divert and interfere with any street



and may for any reasonable time prevent all persons other than those bonâ fide going to or returning from any house in the street from passing along and using the same. A.D. 1913.

(2) The Council shall provide reasonable access for persons bonâ fide going to or returning from any such house.

## PART V.

### WATER.

**68.** When water supplied for domestic purposes is used for washing horses carriages or motor cars or for other purposes in stables or premises where horses carriages or motor cars are kept the Council may if a hose pipe or other similar apparatus is used charge such additional sum not exceeding twenty shillings per annum as they may prescribe and any sum charged under this section shall be recoverable in the same manner as water rates. Supply of water by hose pipe to stables.

**69.** Any pipes valves cocks cisterns baths meters soil-pans waterclosets and other fittings let for hire under the provisions of section 42 (Power to Council to supply materials) of the Act of 1901 and section 20 (Power to sell or let meters) of the Act of 1907 shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Council as the actual owners thereof. Exemption of fittings &c. from distress execution &c.

**70.—(1)** For the purpose of complying with any obligation under the Waterworks Clauses Act 1847 to maintain any pipe or apparatus the person liable to maintain the same shall have the like power to open the ground as is conferred upon him by and subject to the conditions of sections 48 to 52 of the Waterworks Clauses Act 1847 in relation to the laying of communication pipes. As to communication pipes.

(2) The Council may by agreement with any owner or occupier entitled or required to lay maintain repair or remove any communication pipe and for that purpose to open or break up any street in the district execute such works on behalf of such owner or occupier and any expenses incurred by the Council



[Ch. lxiii.] *Broadstairs and St. Peter's Urban* [3 & 4 GEO. 5.]  
*District Council Act, 1913.*

A.D. 1913. shall be repaid by the owner or occupier with whom the agreement is made and shall be recoverable summarily as a civil debt.

Power to  
Council to  
repair com-  
munication  
pipes.

**71.** If it should appear to the Council that by reason of any injury to or defect in any communication pipe which is situate in a highway and which the Council are not under obligation to maintain any waste of water or injury or risk of injury to person or property is caused or likely to be caused it shall be lawful for the Council to execute such repairs as they may think necessary or expedient in the circumstances of the case without being requested so to do and the expense incurred by the Council in executing such repairs shall be recoverable by the Council from the owner of the premises supplied or in cases where the communication pipe is repairable by the occupier of such premises from the occupier.

Maintenance  
of common  
pipe.

**72.** When several houses or parts of houses in the occupation of several persons are supplied with water by one common pipe belonging to the several owners or occupiers of such houses or parts of houses the said several owners or occupiers shall be liable to contribute the amount of any expenses from time to time incurred by the Council in the maintenance and repair of such pipe and their respective proportions of contributions shall be settled by the surveyor or other officer duly authorised in that behalf by the Council.

PART VI.

SEASHORE AND PLEASURE GROUNDS.

Acquisition  
of seashore  
by agree-  
ment.

**73.** The Council may by agreement but not otherwise purchase or take on lease the whole or any portion of the seashore foreshore beach and sands situate within the district.

Agreements  
for use of  
portions of  
pleasure  
grounds by  
clubs and  
associations.

**74.** The Council may from time to time make agreements with any clubs or associations by which any portion of any park garden or pleasure ground for the time being belonging to or held by the Council set apart in pursuance of section 60 (Power to set apart portions of pleasure grounds for games) of the Act of 1901 for the purposes therein mentioned may be secured to such clubs or associations.

Council may  
provide con-  
cert halls &c.

**75.—(1)** The Council may in any pleasure grounds or in any other park or garden belonging to or held by them or upon any promenade belonging to the Council or upon land acquired or to be acquired by them for the purpose erect provide maintain



furnish and equip and may remove any concert halls winter gardens bandstands and other buildings and may charge for admission to such buildings or any of them or in respect of the use thereof or of any part or parts thereof respectively. A.D. 1913.

(2) No power given by this section shall be exercised in such a manner as to contravene any covenant or condition subject to which any pleasure ground park or garden is owned or has been purchased without the consent of the person entitled in law to the benefit of such covenant or condition.

**76.**—(1) The Council may in or at any concert halls pavilions conservatories winter gardens bandstands assembly rooms reading-rooms baths or other buildings for the time being belonging to them or under their control or upon any promenade or upon any portion of the seashore or cliffs belonging to or leased by them or in any recreation ground or upon land acquired by them for the purpose provide and carry on or arrange for the provision or carrying on of suitable entertainments exhibitions and amusements or may let any of the aforesaid buildings other than baths for the purpose of such entertainments exhibitions or amusements upon such terms and conditions as they may think fit or may let the same for particular entertainments or exhibitions or for meetings. Power to let pavilions or provide entertainments therein.

(2) The Council may provide and sell or authorise any person or persons to provide and sell programmes of any concert entertainment exhibition or performance which may from time to time be provided by the Council or with their sanction in any such place or building as aforesaid.

(3) The moneys received by the Council under this and the preceding section of this Act and under the provisions of Part III. (Pleasure grounds) of the Act of 1901 shall be carried to the credit of the district fund and the expenses incurred in exercising the powers contained in the said Part III. of the Act of 1901 and for the maintenance of the said concert halls pavilions conservatories winter gardens bandstands assembly rooms reading-rooms baths and other buildings and for the provision and carrying on or the arranging for the provision and carrying on of the entertainments exhibitions and amusements hereinbefore referred to (including the provision of programmes and including any payments or contributions made under the next following section of this Act) may be paid out of the district fund



[Ch. lxiii.] *Broadstairs and St. Peter's Urban* [3 & 4 GEO. 5.]  
*District Council Act, 1913.*

A.D. 1913. — Provided that the amount so paid out of the said fund shall not in any year exceed the moneys so carried to the credit of the said fund.

(4) The Council may make byelaws for securing good and orderly conduct during any such concert entertainment exhibition or performance.

Power to  
advertise  
performances  
at concert  
halls &c.

77. Subject to the provisions of the last preceding section the Council may in any year out of the district fund pay or contribute towards the cost of providing and maintaining at public places in the district and on passenger boats plying between the district and other places and in newspapers published in the district or in the borough of Ramsgate or in the borough of Margate advertisements of the performances and entertainments provided at their concert halls pavilions conservatories winter gardens and bandstands provided that such payments or contributions shall not in any year exceed the sum of one hundred and fifty pounds.

PART VII.

STREETS BUILDINGS SEWERS AND DRAINS.

Council may  
define future  
line of streets.

78.—(1) When any street or road in the district repairable by the inhabitants at large is in the opinion of the Council narrow or inconvenient or without any sufficiently regular line of frontage or where in their opinion it is necessary or desirable that the line of frontage should be altered the Council may from time to time prescribe and define what shall thereafter be the line of frontage to be observed on either side of such street or road. The line which in any case the Council propose to prescribe and define shall be distinctly marked and shown on a plan to be signed by the chairman of the Council or by the clerk and deposited with the surveyor and such plan shall be at all reasonable times thereafter open for the inspection of the public without charge and one month at least before the Council formally prescribe and define the line they shall give notice in writing of the deposit of the said plan to every owner interested whose name and address they can ascertain and in cases where such name and address cannot be ascertained by affixing such notice to or on the premises. No new building erection excavation or obstruction (being of a permanent character) shall be made nearer to the centre of the street or road than such line.



(2) The Council may and if required so to do by the owner shall purchase and the owner shall if required so to do by the Council sell the land for the time being unbuilt upon lying between any such line as aforesaid and the street or road and the same when purchased shall vest in the Council as part of the street or road and the amount of purchase money shall in case of difference be settled by arbitration under the Arbitration Act 1889. A.D. 1913.

(3) Whenever in any of the above cases the Council shall require the said line to be observed and kept they shall make full compensation to the owner and other persons interested in any land for any loss or damage they may sustain in consequence of the line of frontage being set back and the Council shall also make to the owner of any adjoining land or building and to all other persons interested in any such adjoining land or building full compensation in respect thereof for all damage loss or injury (if any) sustained by them to such land or building by reason of the Council requiring the said line to be observed and kept.

(4) In estimating the amount of compensation or purchase money to be paid by the Council under this section the benefits accruing to the person to whom the same shall be paid by reason of the widening or improvement of the street or road shall be fairly estimated and shall be set off against the said compensation or purchase money.

(5) If after any such line has been defined and prescribed as aforesaid any person offends against this section he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

**79.** Where in the opinion of the Council a new street not being a back street will form a continuation of or means of communication with a main thoroughfare in the district or a continuation of or means of communication with a main approach to the district the Council may if they see fit require the houses or other buildings intended to be erected in such new street to be set back from the centre line thereof to such distance not exceeding forty feet as they may see fit and the Council shall thereupon make full compensation to the owner or owners of and to any other person interested in the lands abutting upon the said new street for any damage which may be sustained by him or them by reason of such houses or other buildings being

Width of new streets in certain cases.



[Ch. lxiii.] *Broadstairs and St. Peter's Urban* [3 & 4 GEO. 5.]  
*District Council Act, 1913.*

A.D. 1913. required to be set back as aforesaid and failing agreement the amount of such compensation shall be determined by arbitration in the manner provided by the Lands Clauses Acts:

Provided always that the Council may if they think fit instead of paying the compensation to such owner or owners under this section agree with him or them for the purchase of the said lands or any part or parts thereof.

All moneys payable by the Council by way of compensation or for the purchase of lands under this section may be defrayed out of moneys authorised by this Act to be borrowed with the sanction of the Local Government Board.

For the purpose of this section "back street" means any street or passage intended to be used only as an access to the back of any building.

Further provisions as to new streets.

**80.** When a road or lane within the district is about to become a new street within the meaning of the Public Health Act 1875 but the land on only one side of such street has been or is in course of being built on the Council may instead of requiring the owner of the land built on or in course of being built on to widen such road or lane to a width prescribed by the byelaws in force within the district require such owner to widen such road or lane so as to give a width not less than one half of such prescribed width from the old centre line of such road or lane to the boundary thereof adjoining such land Provided that if and when the land on the opposite side of such road or lane shall be in course of being built on the owner of such land shall complete the widening of such road or lane so as to comply in all respects with the byelaws of the Council.

For preventing soil sand and other débris from being washed into streets.

**81.**—(1) The owners or occupiers of all lands shall construct such works as may be necessary for the purpose of preventing as far as reasonably practicable the soil sand and other débris of such lands from falling upon or being washed or carried into any public street sewer or gully in such quantities as will obstruct the highway or choke up such sewer or gully or cause the houses in such street to be flooded.

(2) If any person shall for one month after notice in writing from the Council fail in any respect to comply with the provisions of subsection (1) of this section he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.



(3) For the purpose of this section "public street" means a street repairable by the inhabitants at large. A.D. 1913.

**82.** Where premises abutting upon any street are so situate that the surface water from such premises flows on to the footpath of such street the owner of such premises shall within one month after service of an order of the Council for that purpose execute such works as may be necessary to prevent the water from such premises from flowing over the footpath and in default of compliance with such order within the period aforesaid such owner shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding forty shillings.

For preventing water flowing on footpath.

**83.** All buildings or parts of buildings which may in future be erected on the site of any building or on any land which site or land in consequence of any improvement made by the Council becomes front land shall be erected according to such elevation as the Council approve and if the owner lessee or occupier of any building or land which on the making of any such improvement acquires a frontage to the street makes any door or entrance opening upon or communicating with the street or any wall or fence by the side of the street every such owner lessee or occupier shall make the building wall or fence in a line and the elevation thereof fronting to or towards the street in accordance with a drawing approved by the Council and in case the Council for a space of one month after any drawing of such elevation is submitted to them neglect to notify their determination in writing with reference thereto they shall be deemed to have approved thereof. Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings. The Council shall make compensation to the owner of any building or land for any loss or damage he may suffer by reason of the setting back or bringing forward of such building wall or fence.

Elevation of buildings erected on front lands to be subject to approval of Council.

**84.** Whenever any person erecting any building shall be desirous of leaving an opening which may be a source of danger to the public or of placing any steps or other projection in any forecourt area or space left in front of such building such forecourt area or space shall if required by the Council be well and sufficiently fenced off from the footpath or street and any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Forecourts to be fenced off from streets.



[Ch. lxiii.] *Broadstairs and St. Peter's Urban* [3 & 4 GEO. 5.]  
*District Council Act, 1913.*

A.D. 1913.

Means of  
escape from  
buildings in  
case of fire.

**85.**—(1) Every new building exceeding thirty-five feet in height (used or intended to be used as a tavern hotel hospital boarding-house common lodging-house or school) shall be provided on the storeys the upper surface of the floor whereof is above twenty feet from the street level with such means of escape in the case of fire for the persons dwelling or employed therein as may be reasonably required under the circumstances of the case and no such building shall be occupied until the Council shall have issued a certificate that the provisions of this section have been complied with in relation thereto.

(2) The means of escape in case of fire provided in any building in pursuance of this section shall be maintained in good and efficient condition and free from obstruction.

(3) Nothing in this section contained shall be deemed to interfere with the operation of sections 14 and 15 of the Factory and Workshop Act 1901 or of any Act amending the same.

(4) Any person offending against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

As to build-  
ings of iron  
steel or rein-  
forced con-  
crete.

**86.** Notwithstanding any provisions contained in any public or local Act or byelaw in force within the district regulating the construction of buildings the Council shall have power to relax or modify such provisions in the following cases and subject to the following provisions (that is to say):—

(1) Where a person is desirous of erecting an iron steel or reinforced concrete building or structure he shall make an application to the Council accompanied by complete plans sections and elevations of the proposed building or structure with such details and other particulars as to the construction thereof as may be required by the Council:

(2) The Council if satisfied with such plans sections elevations details and particulars shall signify their approval of the same in writing and thereupon the building or structure may be constructed according to such plans sections elevations details and particulars:

(3) The Council may for the purpose of regulating the procedure in relation to such applications and in reference to the excavations for or foundations of or the erection of such buildings and structures make



and issue such general rules as they think fit as to the place time and manner of making applications and as to the plans sections elevations details and particulars to be deposited with the Council and as to the precautions to be taken in connection with any such excavation foundation or erection for safeguarding the stability of the street and the property therein and the public safety and convenience and otherwise and as to any other matter or thing connected therewith respectively. A.D. 1913.

**87.** The owner of any dwelling-house which is not provided with a proper and sufficient water supply who shall occupy or allow to be occupied such dwelling-house shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings unless the dwelling-house was erected before the passing of this Act and such supply is not available. Provisions as to house without watersupply.

**88.** The Council may make byelaws with respect to the following matters (viz.) :— Power to make bye-laws.

- (1) The materials with which new buildings shall be constructed and the manner in which and the materials with which grates stoves and fireplaces shall be set in new buildings or be newly set or reset in existing buildings and the thickness and construction of walls of all ovens and furnaces wholly or partially built after the passing of this Act:
- (2) The uniting of buildings and the making and stopping up of openings in party walls of buildings and the provision of fire-resisting doors in connection therewith and as to the occupation of buildings when united:
- (3) Woodwork in external walls of buildings Provided always that any byelaw made under this subsection may authorise the Council if they think fit to exempt from the operation of such byelaw oak teak or other wood which the Council may approve:
- (4) The testing of drains of new buildings.

**89.—**(1) In case any building is at any time after the passing of this Act erected or raised to a greater height than the adjoining building and any flues or chimneys of such adjoining building are in the outer or party wall or against the building Erection of buildings to greater height than adjoining buildings.



[Ch. lxiii.] *Broadstairs and St. Peter's Urban* [3 & 4 GEO. 5.]  
*District Council Act, 1913.*

A.D. 1913. — so erected or raised the person erecting or raising such building shall at his own expense build up those flues and chimneys so that the top thereof may be of the same height as the top of the chimneys of the building so erected or raised.

(2) Any person who shall offend against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Area of  
habitable  
rooms.

**90.**—(1) Every new dwelling-house shall be provided with at least one living-room with a floor area of not less than one hundred and fifteen square feet and one bedroom with a floor area of not less than one hundred and ten square feet.

(2) No bedroom or other habitable room in any such dwelling-house shall have less floor area than seventy square feet.

(3) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Sanitary  
conveniences  
for workmen  
engaged on  
buildings.

**91.**—(1) The contractor or builder engaged in or upon the construction reconstruction or alteration of any building in the district shall where practicable provide to the reasonable satisfaction of the Council and until the completion of any such work or operation sufficient water or other closets and urinals for the use of workmen.

(2) Any person offending against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Council may  
require en-  
larged sewer.

**92.** If in any street not repairable by the inhabitants at large the Council for the purpose of main drainage or otherwise shall require a larger sewer to be made than they consider necessary for the ordinary sewerage of such street the person laying out such street shall construct such enlarged sewer in accordance with the requirements of the Council and the additional cost thereof as ascertained by the surveyor shall be paid by the Council.

Council may  
order houses  
to be drained  
by a com-  
bined drain.

**93.**—(1) If it appears to the Council that two or more houses may be drained more economically or advantageously in combination than separately and a sewer of sufficient size already exists or is about to be constructed within one hundred feet of any part of the premises the Council may when the drains of such houses are first laid order that such houses be drained by a combined drain to be constructed either by the Council if they so decide or by the owners in such manner as the Council shall



direct and the costs and expenses of such combined drain and the repair and maintenance thereof shall be apportioned between the owners of such houses in such manner as the Council shall determine and if such drain is constructed by the Council such costs and expenses may be recovered by the Council from such owners. A.D. 1913.

(2) Any combined drain constructed in pursuance of this section shall for the purposes of the Public Health Acts be deemed to be a drain and not a sewer.

(3) Provided that the Council shall not exercise the powers conferred by this section in respect of any house plans for the drainage of which shall have been previously approved by them.

**94.** The powers given by section 19 of the Public Health Acts Amendment Act 1890 in relation to two or more houses belonging to different owners shall extend and apply to two or more houses belonging to the same owner. Amendment of section 19 of Public Health Acts Amendment Act 1890.

**95.** The Council may on the application and at the expense of any person owning or occupying premises abutting or fronting on any street not repairable by the inhabitants at large wherein a sewer has been laid lay down take up alter relay or renew in across or along such street such drains as may be requisite or proper for connecting such premises with the sewer doing as little damage as may be in the execution of the powers hereby granted and making compensation for any damage which may be done in the execution of such powers such compensation to be ascertained by and recovered before a court of summary jurisdiction. Power to lay drains in private streets.

**96.** If the owner or occupier of any premises within the district desires that the sewer or drain from such premises shall be made to communicate with any sewer of the Council such communication shall be made by the Council upon the cost or estimated cost of making the communication being paid to the Council or the payment thereof to them being secured to their satisfaction and the Council may execute all works necessary for that purpose. Council may make communication between drains and sewers.

**97.—**(1) It shall not be lawful for any person to reconstruct or alter the course of any drain communicating with any sewer of the Council except in accordance with the provisions of the byelaws of the Council relating to the drainage of existing buildings. Reconstruction of drains.



[Ch. lxiii.] *Broadstairs and St. Peter's Urban* [3 & 4 GEO. 5.]  
*District Council Act, 1913.*

A.D. 1913.  
—

(2) Any person offending against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Notice of intention to repair drains.

**98.**—(1) It shall not be lawful for any person to repair any drain communicating with any sewer of the Council without giving to the Council or the medical officer twenty-four hours' previous notice in writing of his intention to do so except in case of emergency and in that case it shall not be lawful for any person to cover over the drain without giving the like notice of his intention to do so.

(2) Free access to such drain or work of repair shall be afforded to the inspector of nuisances or any officer of the Council authorised in writing by the medical officer for the purpose of inspection.

(3) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds.

Improper construction or repair of watercloset or drain.

**99.** If a watercloset drain or soil pipe is so constructed or repaired as to be a nuisance or injurious or dangerous to health the person who undertook or executed such construction or repair shall unless he shows that such construction or repair was not due to any wilful act neglect or default be liable to a penalty not exceeding twenty pounds. Provided that where a person is charged with an offence under this section he shall be entitled upon information duly laid by him to have any other person being his agent servant or workman whom he charges as the actual offender brought before the court at the time appointed for hearing the charge and if he proves to the satisfaction of the court that he had used due diligence to prevent the commission of the offence and that the said other person committed the offence without his knowledge consent or connivance he shall be exempt from any penalty and the said other person may be summarily convicted of the offence.

Wilful damage to drains water-closets &c.

**100.** If any person causes any drain watercloset earth-closet privy or ashpit to be a nuisance or injurious or dangerous to health by wilfully destroying or damaging the same or any water supply apparatus pipe or work connected therewith or by otherwise wilfully stopping up or wilfully interfering with or improperly using the same or any such water supply apparatus pipe or work he shall be liable to a penalty not exceeding five pounds. Provided that nothing in this section shall prejudice



any right which the owner or occupier of any premises aggrieved by any such act may have to recover compensation in respect of any damage suffered by him by reason of such act. A.D. 1913.

**101.** The Council may provide and maintain orderly bins or other receptacles for the collection and temporary deposit of street refuse and waste paper and the storage of sand grit or shingle in upon or under the streets of the district of such dimensions and in such positions as they may from time to time determine. *Street orderly bins.*

**102.**—(1) The soil pipe of any watercloset within a house or building shall be properly ventilated by means of a pipe carried up therefrom or subject to the provisions of section 37 of the Public Health Acts Amendment Act 1907 by such other method as the Council shall direct. *Soil pipes to be ventilated.*

(2) Any owner or occupier of such house or building who shall neglect or fail to comply with any requirement of the Council under this section for a period of twenty-eight days after notice in writing of such requirement and the mode in which the same is to be complied with shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

**103.**—(1) Every pipe from any slop-stone bath or basin in a building shall where practicable be carried through the external wall of such building and be constructed so as to discharge in the open air on the outside of such building over a channel leading to a gulley grating at a suitable distance and every gulley grating or other inlet to the drains shall be properly trapped. *Pipes from slop-stones to be disconnected from sewers.*

(2) Any person neglecting or refusing for a period of twenty-eight days to comply with a notice from the Council requiring him to carry out the provisions of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding ten shillings.

(3) Provided that this section shall only apply to buildings existing at the passing of this Act and that any expense incurred in respect of such building beyond a sum of two pounds shall be borne by the Council.

**104.** If the occupier of any house or part of a house shall prevent the owner thereof from carrying into effect any requirement of the Council under this Part of this Act then after notice of this provision shall have been given by the owner to *Penalty on occupiers refusing execution of Act.*



[Ch. lxiii.] *Broadstairs and St. Peter's Urban* [3 & 4 GEO. 5.]  
*District Council Act, 1913.*

A.D. 1913. — the occupier any court of summary jurisdiction upon proof thereof may make an order in writing requiring the occupier to permit the owner to execute the works required by the Council to be done and if after the expiration of seven days from the service of such order the occupier shall continue to refuse to permit the owner to execute the said works he shall for every day during which he shall so continue to refuse be liable to a penalty not exceeding two pounds and during the continuance of his refusal the owner shall be discharged from any penalties to which he might otherwise have become liable by reason of his default in executing such works.

Power of entry.

**105.** The provisions of section 102 (Power of entry of local authority) and section 103 (Penalty for disobedience of order) of the Public Health Act 1875 shall extend and apply to the purposes of this Part of this Act as if those purposes had been mentioned in the said section 102.

Saving as to railway companies.

**106.** The provisions of this Part of this Act shall not extend or apply to any building (not being a dwelling-house) belonging to and used and occupied by a railway company as a part of or in connection with their railway under any Act of Parliament.

PART VIII.

INFECTIOUS DISEASE AND SANITARY PROVISIONS.

Provisions as to retailers of milk.

**107.** The provisions of section 34 of the Contagious Diseases (Animals) Act 1878 and of the Dairies Cowsheds and Milkshops Order 1885 made thereunder and of any other Order made or to be made under the said section or relating to dairies cowsheds and milkshops and of any regulations made or to be made by the Council under any such Order for securing the cleanliness of milk vessels used for containing milk for sale shall apply to all vessels used within the district for the reception measurement storage or delivery of milk by persons selling milk by retail in the streets.

Information to be furnished to medical officer and penalty for furnishing false information.

**108.**—(1) The occupier of any building in the district which is used for human habitation and in which there is or has been any person suffering from a dangerous infectious disease shall on the application of the medical officer at any time during the illness of such person or within six weeks from the occurrence of such illness furnish such information within his knowledge as the medical officer may reasonably



require for the purpose of enabling measures to be taken to prevent the spread of the disease. A.D. 1913.

(2) Any occupier knowingly furnishing false information shall be liable on summary conviction to a penalty not exceeding forty shillings.

(3) In this section the expression "occupier" shall have the same meaning as in the Infectious Disease (Notification) Act 1889.

**109.**—(1) Any person being a manufacturer or vendor of or merchant or dealer in ice-cream or other similar commodity who within the district—

For regula-  
ting manu-  
facture and  
sale of ice-  
cream &c.

(a) Causes or permits ice-cream or any similar commodity or any materials used in the manufacture thereof to be manufactured sold or stored in any sleeping-room or in any room cellar or place which is in a condition likely to render such commodity injurious to health or in which there is an inlet or opening to a drain; or

(b) In the manufacture sale or storage of any such commodity does any act or thing likely to expose such commodity to infection or contamination or omits to take any proper precaution for the due protection of such commodity from infection or contamination; or

(c) Omits on the outbreak of any infectious disease amongst the persons employed in his business to give notice thereof to the medical officer;

shall be liable for every such offence upon summary conviction therefor to a penalty not exceeding forty shillings.

(2) In the event of any inmate of any building (any part of which is used for the manufacture of ice-cream or similar commodity) suffering from any infectious disease the medical officer may seize and destroy all ice-cream or similar commodity or materials for the manufacture of the same in such building and the Council shall compensate the owner of the ice-cream commodity or materials so destroyed.

(3) Every dealer in ice-cream or other similar commodity vending his wares from any cart barrow or other vehicle or stand shall have his name and address legibly painted or inscribed on such cart barrow vehicle or stand and any person who shall fail to comply with this subsection shall be liable upon conviction to a penalty not exceeding forty shillings.



A.D. 1913.

(4) Any officer duly authorised by the Council in that behalf shall at all reasonable times have the same power of entry into and inspection of the premises of a manufacturer or vendor of or merchant or dealer in ice-cream or other similar commodity for the purpose of inspecting such premises and the materials or commodities or articles of food therein as an officer of the Council would have under section 102 (Power of entry of local authority) of the Public Health Act 1875 in the cases therein mentioned and any person refusing entry into or inspection of such premises as aforesaid or obstructing such officer as aforesaid in the execution of his duty shall be liable upon conviction to a penalty not exceeding forty shillings for each offence.

Removal of  
body of per-  
son dying of  
infectious  
disease.

**110.** When any person suffering from infectious disease whereof notice shall have been given to the medical officer shall die in the district of such disease the medical officer may give notice thereof to the person responsible for the conduct of the burial of the body of such person and in such cases it shall not be lawful to transport any such body by railway or other public conveyance (not being a conveyance reserved for such purpose) unless and until the medical officer has certified that every precaution necessary for the public safety has been adopted to his satisfaction and any undertaker and any person so responsible who shall after the giving of such notice knowingly remove or assist in removing such body without such certificate and any person who unless unaware of such notice shall procure or endeavour to procure the removal of such body without having obtained such certificate shall be liable to a penalty not exceeding ten pounds.

Amendment  
of law as to  
offensive  
trades.

**111.** For the purposes of section 112 (Restriction on establishment of offensive trade in urban district) of the Public Health Act 1875 a trade business or manufacture shall be deemed to be established not only if it is established anew but also if it is removed from any one set of premises to any other premises or if it is renewed on the same set of premises after having been discontinued for a period of six months or upwards or if any premises on which it is for the time being carried on are enlarged without the sanction of the Council but a trade business or manufacture shall not be deemed to be established anew on any premises by reason only that the ownership of such premises is wholly or partially changed or that the building in which it is established having been wholly or partially pulled



down or burnt down has been reconstructed without any extension of its area. A.D. 1913.

**112.**—(1) The Council may by notice in writing require the owner or occupier of any dwelling-house warehouse or shop to provide portable galvanized iron or enamelled iron dustbins in lieu of ashpits or ashtubs or other receptacles for refuse and such bins shall be of such size and construction as may be approved by the Council. Regulation dustbins.

(2) Any owner or occupier who fails within fourteen days after notice given to him to comply with the requirements of the Council under this section shall be liable to a penalty not exceeding twenty shillings and to a daily penalty not exceeding five shillings.

(3) Provided that this section shall not apply to any ashpits or ashtubs or other receptacles for refuse in use at the passing of this Act so long as the same are of suitable material size and construction and in proper order and condition.

**113.**—(1) Public notice of the foregoing provisions of this Part of this Act shall be given forthwith after the passing of this Act by advertisement in two newspapers published or circulating in the district and by a notice affixed outside the Council offices and by the distribution of handbills amongst persons affected or likely to be affected so far as such persons can reasonably be ascertained. Public notice to be given of provisions of this Part of Act.

(2) Copies of the newspapers containing the advertisements shall be sufficient evidence that the provisions of this section have been complied with.

## PART IX.

### LOCAL RATES.

**114.** Upon the persons now holding the offices of collector of the poor rates for the parishes of St. Peter Intra and St. Peter Extra or either of them ceasing to hold those offices the power of the guardians of the poor of the Isle of Thanet Union to appoint collectors of the poor rate shall cease in respect of such parish. Collection of local rates.

**115.** The powers of section 221 (Rates may be amended) of the Public Health Act 1875 shall extend to enable the Council to amend any rate made by them in pursuance of such Act Rates may be amended to accord with new or supplementary valuation list.



A.D. 1913 — so as to make the assessment to such rate accord with any new or supplementary valuation list made during the currency of such rate.

PART X.

FINANCIAL.

Power to  
borrow.

**116.**—(1) The Council may from time to time independently of any other borrowing power borrow at interest any sum or sums of money for the purposes hereinafter mentioned not exceeding the respective amounts following (that is to say):—

(a) For the purchase of land for and for the construction of the street improvements authorised by this Act the sum of fifteen thousand pounds:

(b) For paying the costs charges and expenses of this Act including the taxed costs of the opposition of the Isle of Thanet Council to the Bill for this Act as hereinafter provided the sum requisite for that purpose.

(2) The Council shall pay off all money borrowed by them under subsection (1) of this section and all moneys borrowed by the commissioners under the Act of 1792 or the Act of 1805 within the respective periods (each of which is in this Act referred to as "the prescribed period") following (that is to say):—

As to money borrowed for the purposes (a) mentioned in this section within fifty years from the date or dates of borrowing the same:

As to money borrowed for the purpose (b) within five years from the passing of this Act:

As to moneys borrowed by the commissioners under the Act of 1792 or the Act of 1805 within such period as may be prescribed by the Board of Trade.

(3) The Council may also with the consent of the Board of Trade borrow such further money as may be necessary for the purpose of extending and improving the harbour and the approaches thereto and the pier and any works connected therewith and for payment of compensation to officers or servants of the commissioners and may with the consent of the Local Government Board borrow such further money as may be necessary for any of the purposes of this Act other than the purposes hereinbefore mentioned.



Any money borrowed under this subsection shall be repaid within such period (in this Act referred to as "the prescribed period") as may be prescribed by the Board of Trade or the Local Government Board as the case may be. A.D. 1913.

(4) In order to secure the repayment of the money borrowed under this section and the payment of the interest thereon the Council may mortgage or charge—

As regards moneys borrowed for the purposes (a) and (b) hereinbefore mentioned the district fund and the general district rate:

As regards moneys borrowed with the consent of the Board of Trade or the Local Government Board such fund rate or revenue as that Board may prescribe.

The provisions of this section shall not limit the powers conferred on the Council by the section of this Act whereof the marginal note is "Power to use one form of mortgage for all purposes."

**117.** The following provisions of the Act of 1901 with any necessary modifications and subject as regards mortgages granted under the section of this Act the marginal note of which is "Power to use one form of mortgage for all purposes" to the provisions of that section shall extend and apply to and for the purposes of this Act as if the same were re-enacted in this Act (namely):—

Section 107 (Mode of raising money);

Section 108 (Certain regulations of Public Health Act as to borrowing not to apply);

Section 109 (Provisions of Public Health Act as to mortgages to apply);

Section 112 (Regulations as to sinking fund);

Section 115 (Council not to regard trusts).

**118.**—(1) Where the Council have for the time being any statutory borrowing power they may for the purpose of exercising such power grant mortgages in pursuance of the provisions of this section. Power to use one form of mortgage for all purposes.

(2) Every mortgage granted under this section shall be by deed truly stating the consideration and the time or the mode of ascertaining the time and the place of payment and shall be



[Ch. lxiii.] *Broadstairs and St. Peter's Urban* [3 & 4 GEO. 5.]  
*District Council Act, 1913.*

A.D. 1913. — sealed with the common seal of the Council and may be made in the form contained in the Second Schedule to this Act or to the like effect.

(3) All mortgages granted under this section shall rank equally without any priority or preference by reason of any precedence in the date of any statutory borrowing power or in the date of the mortgages or on any other ground whatsoever and shall also rank equally with all other securities granted by the Council at any time after the date of the first grant of a mortgage under this section.

(4) The repayment of all principal sums and the payment of interest thereon secured by mortgages granted under this section shall be and the same are by virtue of this Act charged indifferently upon all the revenues of the Council.

(5) Nothing in this section contained shall alter or affect the obligations of the Council to provide for the repayment of the sums secured by mortgages granted under this section and all such sums shall be repaid within the periods by the means and out of the funds rates or revenues within by and out of which they would have been repayable respectively if this section had not been enacted.

(6) Nothing in this section contained shall alter or affect the obligations of the Council to provide for the payment of interest upon the sums secured by mortgages granted under this section and the interest upon such sums shall be paid out of the funds rates or revenues out of which such interest would have been payable respectively if this section had not been enacted.

(7) There shall be kept at the office of the Council a register of the mortgages granted under this section and within fourteen days after the date of any such mortgage an entry shall be made in the register of the number and date thereof and of the names and descriptions of the parties thereto as stated in the deed. Every such register shall be open to public inspection during office hours at the said office without fee or reward and the clerk or other the person having the custody of the same refusing to allow such inspection shall be liable to a penalty not exceeding five pounds.

(8) Any mortgagee or other person entitled to any mortgage granted under this section may transfer his estate and interest



to any other person by deed duly stamped truly stating the consideration and such transfer may be according to the form contained in the Second Schedule to this Act or to the like effect. A.D. 1913.

(9) There shall be kept at the office of the Council a register of the transfers of mortgages granted under this section and within thirty days after the date of every deed of transfer if executed within the United Kingdom or within thirty days after its arrival in the United Kingdom if executed elsewhere the same shall be produced to the clerk who shall on payment of a sum not exceeding five shillings cause an entry to be made in such register of its date and of the names and descriptions of the parties thereto as stated in the deed of transfer and until such entry is made the Council shall not be in any manner responsible to the transferee.

(10) On the registration of any transfer the transferee his executors or administrators shall be entitled to the full benefit of the original mortgage and the principal and interest secured thereby and any transferee may in like manner transfer his estate and interest in any such mortgage and no person except the last transferee his executors or administrators shall be entitled to release or discharge any such mortgage or any money secured thereby.

(11) If the clerk wilfully neglects or refuses to make in the register any entry by this section required to be made he shall be liable to a penalty not exceeding twenty pounds.

**119.**—(1) Where the Council are authorised by any statutory borrowing power to raise money for any purpose they may instead of exercising such borrowing power by the issue of any fresh security in respect thereof exercise the said power and raise the said money either wholly or partially by using for such purpose so much of any money for the time being forming part of a sinking fund as shall be available for the repayment of—

Power to use  
sinking fund  
instead of  
borrowing.

- (a) A loan which is secured by a charge on the same rate fund or revenue as would be specifically chargeable as the security for the repayment of a loan under the statutory borrowing power if the same were raised by the issue of a fresh security and which is not shown by the deed to be raised in exercise of a particular borrowing power specified therein; or



[Ch. lxiii.] *Broadstairs and St. Peter's Urban* [3 & 4 GEO. 5.]  
*District Council Act, 1913.*

A.D. 1913.

(b) Moneys borrowed and charged upon all the revenues of the Council in manner provided by the section of this Act whereof the marginal note is "Power to use one form of mortgage for all purposes" and not shown by the deed to be raised in exercise of a particular borrowing power specified therein.

(2) The Council when exercising the powers conferred on them by this section shall—

(a) Withdraw from the sinking fund a sum equal to the amount of the statutory borrowing power proposed to be exercised by the user of money from such sinking fund :

(b) Credit such sinking fund with the repayment of an amount of the principal moneys for the repayment of which the fund is established equal to the sum withdrawn from the sinking fund and thereupon the amount so credited shall be deemed to be principal moneys discharged by application of the sinking fund :

(c) Debit the account of the statutory borrowing power proposed to be exercised with an amount of the principal money equal to the sum withdrawn from such sinking fund and thereupon the statutory borrowing power shall be deemed to have been exercised as fully as if the said amount had been raised by the issue of a fresh security and the provisions of any enactment as to the repayment and reborrowing of sums raised under the statutory borrowing power shall apply thereto accordingly.

(3) The provisions of this section shall not apply to any sinking fund formed under the Local Loans Act 1875.

(4) The Council shall furnish all such information (if any) to the Local Government Board with regard to the exercise of the powers contained in this section as that Board shall require.

Application  
of moneys  
borrowed.

**120.** All moneys borrowed by the Council under this Act shall be applied only to the purposes for which they are authorised to be borrowed and to which capital is properly applicable Provided that moneys which may have been borrowed in excess



of the amount required shall be paid into the sinking fund or shall be applied in such manner as the Council with the approval of the Local Government Board determine. A.D. 1913.

**121.** Any person lending money to the Council under this Act shall not be bound to inquire as to the observance by them of any provisions of this Act nor be bound to see to the application nor be answerable for any loss or non-application of the money lent or of any part thereof. Protection of lender from inquiry.

**122.** The Council shall pay off all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or others of them and the payment of the first instalment or the first payment to the sinking fund shall be made within one year or when the money is repaid by half-yearly instalments within six months from the date of borrowing. Mode of payment off of money borrowed.

**123.—**(1) The Council shall have power—

- (a) To borrow for the purpose of paying off any moneys previously borrowed under any statutory borrowing power which are intended to be forthwith repaid; or
- (b) To borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Council in repaying moneys previously borrowed under any statutory borrowing power and which at the time of such repayment it was intended to replace by borrowed moneys.

Power to re-borrow.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the period prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Council shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.



[Ch. lxiii.] *Broadstairs and St. Peter's Urban* [3 & 4 GEO. 5.]  
*District Council Act, 1913.*

A.D. 1913.

(4) The Council shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(a) By instalments or annual payments; or

(b) By means of a sinking fund; or

(c) Out of moneys derived from the sale of land; or

(d) Out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

(5) Section 24 (Power to re-borrow) of the Act of 1907 is hereby repealed but without prejudice to anything done or suffered to be done thereunder.

Returns to  
Local Go-  
vernment  
Board as to  
sinking  
funds.

**124.**—(1) The clerk shall within forty-two days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in respect of any of the moneys raised by the Council in pursuance of any statutory borrowing power and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by a statutory declaration of the clerk showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such a return the clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Board out of the High Court.



(2) If it appear to the Local Government Board by that return or otherwise that the Council have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by the Act in pursuance of which the moneys are raised or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of the sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court. A.D. 1913.

(3) Section 113 (Return respecting sinking fund to Local Government Board) of the Act of 1901 is hereby repealed.

**125.**—(1) The Council may at any time hereafter and from time to time make a scheme for prescribing one or more uniform periods within which all or any loans contracted by them under statutory borrowing powers shall be discharged and such scheme may extend or vary the periods within which such loans shall be discharged and may make provision in regard to all matters incidental thereto. Scheme for fixed equated periods.

(2) No scheme made by the Council under this section shall have any force or effect until confirmed by the Local Government Board who may by order confirm the same with or without modifications and when so confirmed the scheme shall notwithstanding any enactment order or sanction to the contrary have full force and effect and such scheme shall be deemed to be within the powers of this Act Provided that nothing in any scheme made under this section shall prejudice or affect the security rights and remedies of any mortgagee under any mortgage existing at the time of the confirmation of the scheme or of the holder of any stock existing at that time except with the consent of such mortgagee or holder.

(3) The Council may with the sanction of the Local Government Board and on the security of the revenues funds or rates respectively on the security of which the moneys included in the scheme were respectively authorised to be borrowed borrow



[Ch. lxiii.] *Broadstairs and St. Peter's Urban* [3 & 4 Geo. 5.]  
*District Council Act, 1913.*

A.D. 1913. — such sums as may be necessary for the purpose of giving effect to such scheme and for compensating the holders of securities of the Council for their consent thereto and any moneys so borrowed shall be repaid within such period as the Local Government Board may sanction.

(4) Any scheme confirmed under this Act may be altered extended amended or annulled by any other scheme prepared and confirmed in like manner as the original scheme.

Liabilities of  
harbour  
undertaking  
and general  
liabilities of  
Council to be  
separate.

**126.** The harbour undertaking and the harbour revenue shall not be liable in respect of any claim or demand against or any liability of the Council arising otherwise than in respect or by reason of the harbour undertaking and all liabilities incurred in respect of the harbour undertaking and all claims and demands against the Council arising in respect or by reason of the harbour undertaking shall be enforceable against the harbour undertaking and the harbour revenue only and no other revenues funds or property of the Council shall be liable in respect thereof. Provided that nothing in this section shall prejudice or affect the rights or remedies of the holder of any mortgage comprising the district fund and general district rate made under the section of this Act of which the marginal note is "Power to borrow":

Provided also that any moneys paid out of the district fund or general district rate in respect of any such mortgage shall be a debt due from the harbour undertaking to the district fund and shall be repaid to that fund out of the harbour revenue as by this Act provided.

Separate  
accounts to  
be kept  
Audit of  
same.

**127.** The Council shall keep separate accounts of their receipts and expenditure from or in respect of their harbour undertaking on capital and revenue account and where any expenses are incurred in respect of the harbour undertaking and any other account jointly they shall apportion such expenses between the harbour undertaking and such other account and the harbour accounts shall be audited in each year in the same manner as the other accounts of the Council are audited and subject to the provisions relating thereto.

The Council shall not later than the thirtieth day of June in every year send to the Board of Trade a copy of their accounts in respect of their harbour undertaking and if the Council refuse or neglect to send such copy they shall for every



such refusal or neglect be liable to a penalty not exceeding A.D. 1913/  
twenty pounds.

**128.**—(1) Subject to the provisions of this Act with reference Contingency  
fund in re-  
spect of har-  
bour under-  
taking.  
to the application of the harbour revenue the Council may in  
any year if they think fit for the purpose of forming and  
maintaining a contingency fund not exceeding at any one time  
the sum of two thousand pounds to meet any deficiency of  
harbour revenue or any extraordinary claim or demand or any  
unforeseen accident or extraordinary damage which may happen  
or be caused to the harbour undertaking set apart out of the  
harbour revenue such a sum as they may think fit.

(2) Every sum set apart under this section shall be invested  
in any statutory security the Council being at liberty to vary  
and transpose such investment and the interest thereon shall be  
accumulated until the fund reaches the total sum of two thousand  
pounds or is required for any of the purposes mentioned in this  
section and so soon as the fund reaches the total sum of two  
thousand pounds such interest shall be placed to the credit of  
the harbour revenue.

**129.** The harbour revenue shall be applied for the purposes Application  
of harbour  
revenue.  
and in the order following and not otherwise (that is to say) :—

- (1) In paying the cost of the maintenance repair management  
and regulation of the harbour undertaking;
- (2) In paying year by year the interest on money borrowed  
on the security of the harbour revenue;
- (3) In repayment as by this Act provided of money borrowed  
on the security of the harbour revenue;
- (4) In repaying to the district fund any moneys due thereto  
from the harbour undertaking;

and the revenue remaining over shall be applied to such amount  
in each case as the Council think fit—

- (A) In the improvement of the harbour undertaking;
- (B) In the formation of the contingency fund mentioned in  
the section of this Act of which the marginal note  
is “Contingency fund in respect of harbour under-  
taking”;

and any revenue then remaining over which may not in the  
opinion of the Council be required for carrying on the harbour  
undertaking and paying the current expenses in connection  
therewith shall be paid to the district fund.



[Ch. lxiii.] *Broadstairs and St. Peter's Urban* [3 & 4 GEO. 5.]  
*District Council Act, 1913.*

A.D. 1913.

Expenses of  
executing  
Act.

**130.** Save as otherwise by this Act expressly provided all expenses incurred by the Council in carrying into execution the provisions of this Act (except such of those expenses as are to be paid out of borrowed moneys) shall be paid out of the district fund or general district rate. Provided that when any expenditure is incurred or any money is received for purposes common to two or more accounts the Council may apportion the same between those accounts in such manner as they deem equitable.

PART XI.

MISCELLANEOUS.

Works below  
high-water  
mark not to  
be com-  
menced with-  
out consent  
of Board of  
Trade.

**131.** The Council shall not under the powers of this Act construct on the shore of the sea or of any creek bay arm of the sea or navigable river communicating therewith where and so far up the same as the tide flows and reflows any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve of such approval being signified as last aforesaid and where any such work may have been constructed the Council shall not at any time alter or extend the same without obtaining previously to making any such alteration or extension the like consents or approvals. If any such work be commenced or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the costs and charges of the Council and the amount of such costs and charges shall be a debt due from the Council to the Crown and shall be recoverable as a Crown debt or summarily.

Restrictions  
on advertis-  
ing vehicles.

**132.** It shall not be lawful in any street in the district to use any vehicle exclusively or principally for the purpose of displaying advertisements without the consent of the Council which consent shall be in writing and may be for such time and contain such terms and conditions as the Council think fit. Any person who acts in contravention of the provisions of this section or who violates any conditions made or the terms of any consent given in pursuance of such provisions shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings. Any person aggrieved under this



section by the refusal of the Council to give such consent or by the terms or conditions attached to such consent may appeal to a court of summary jurisdiction within three clear days after the decision of the Council is notified to him in writing under the hand of the clerk provided he gives twenty-four hours' notice of such appeal and the grounds thereof to the clerk and the court shall have power to make such order as they think fit. A.D. 1913.

**133.** The Council may erect or fix street fire alarms in such positions in any street road or public place within the district as they think fit. Provided that nothing in this section shall authorise the transmission of any telegram which is within the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869. Fire alarms.

**134.** Where in any legal proceedings taken by or on behalf of or against the Council or any officer servant solicitor or agent of the Council or of any committee of the Council under this Act or under any general or local Act for the time being in force in the district it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent of the Council or of any committee of the Council or to prove any resolution or order of the Council or any resolution order or report of any committee of the Council a certificate of such appointment authority resolution order or report purporting to be authenticated by the signature of the chairman of the Council or of the clerk shall be *prima facie* evidence of such appointment authority resolution order or report without further proof of the holding of any meeting or the production of any minute book or other record or document. Evidence of appointments authority &c.

**135.** Where under this Act or under any general or local Act for the time being in force in the district the Council give their consent to the execution of any work or the doing of any act or thing subject to any terms or conditions which they are authorised to impose any breach of any such terms or conditions shall be deemed as regards liability to a penalty and other consequences equivalent to the execution of the work or the doing of the act or thing without the required consent. As to breach of conditions of consent of Council.

**136.** The Council may declare any expenses incurred by them under the provisions of this Act which are recoverable from the owner or owners of any premises to be private improve- Expenses may be declared private im-



[Ch. lxiii.] *Broadstairs and St. Peter's Urban* [3 & 4 GEO. 5.]  
*District Council Act, 1913.*

A.D. 1913. ment expenses and thenceforth those expenses may be recovered  
provement and shall be charged upon the premises in respect of which they  
expenses. were incurred in accordance with the provisions of section 257  
of the Public Health Act 1875.

Authentica- 137.—(1) Where any notice or demand under this Act or  
tion and under any local Act Provisional Order or byelaw for the time  
service of being in force within the district requires authentication by the  
notices &c. Council the signature of the clerk or other duly authorised  
officer of the council shall be sufficient authentication.

(2) Notices demands orders and other documents required  
or authorised to be served under this Act or under any local  
Act Provisional Order or byelaw for the time being in force  
within the district may be served in the same manner as notices  
under the Public Health Act 1875 are by section 267 (Service  
of notices) of that Act authorised to be served Provided that  
in the case of any company any such notice demand order or  
document shall be delivered or sent by post addressed to the  
secretary of the company at their registered office or at their  
principal office or place of business.

Confirmation 138. The provisions of the following sections of the Public  
of byelaws. Health Act 1875 (namely):—

Section 182 (Authentication and alteration of byelaws);

Section 183 (Power to impose penalties on breach of bye-  
laws);

Section 184 (Confirmation of byelaws);

Section 185 (Byelaws to be printed &c.); and

Section 186 (Evidence of byelaws);

so far as they relate to byelaws made by an urban sanitary autho-  
rity shall apply to all byelaws made by the Council under the  
powers of Parts VI. and VII. of this Act.

As to appeal. 139. Any person deeming himself aggrieved by any order  
judgment determination or requirement or the withholding of  
any certificate licence consent or approval of or by the Council  
or of or by any officer of the Council under the provisions of  
this Act or by any conviction or order made by a court of  
summary jurisdiction under the provisions of this Act may if  
no other mode of appeal is provided by this Act appeal to  
the next practicable court of quarter sessions under and



according to the provisions of the Summary Jurisdiction Acts A.D. 1913.  
and in regard to any such order made by a court of summary  
jurisdiction the Council may in like manner appeal.

**140.** Where under the provisions of this Act the Council shall construct or do any works for the common benefit of two or more buildings belonging to different owners the expenses which under this Act are recoverable by the Council from the owners shall be paid by the owners of such buildings in such proportions as shall be determined by the surveyor or in case of dispute by a court of summary jurisdiction.

Apportionment of expenses in case of joint owners.

**141.** Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner. Provided that costs and expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Recovery of penalties &c.

**142.** Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Recovery of demands.

**143.** Save as otherwise by this Act expressly provided all informations and complaints under or in respect of the breach of any of the provisions of this Act may be laid and made by an officer of the Council authorised in that behalf or by the clerk.

Informations by whom to be laid.

**144.** All penalties recovered on the prosecution of the Council or any officer of the Council on their behalf under this Act or under any byelaw thereunder shall be paid to the treasurer of the Council and be by him carried to the credit of the district fund or to such other fund as the Council shall direct.

Penalties to be paid over to treasurer.

**145.** A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to any rate.

Judges not disqualified.



[Ch. lxiii.] *Broadstairs and St. Peter's Urban* [3 & 4 GEO. 5.]  
*District Council Act, 1913.*

A.D. 1913.

—  
Saving for  
indictments  
&c.

**146.** Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of any such matter from any penal or other consequence to which he would have been liable if such matter had not been made punishable by this Act Provided that nothing in this Act shall make a person liable to be punished more than once for the same offence.

Powers of  
Act cumulative.

**147.** All powers rights and remedies given to the Council by this Act shall (except where otherwise expressly provided) be deemed to be in addition to and not in derogation of any other powers rights or remedies conferred on them or on any committee appointed by them by Act of Parliament charter law or custom and the Council or such committee (as the case may be) may exercise such other powers and be entitled to such other rights and remedies as if this Act had not been passed Provided that no person shall incur more than one penalty (other than a daily penalty for a continuing offence) for the commission of the same offence.

Incorporation of certain  
sections of  
Act of 1901.

**148.** The following sections of the Act of 1901 are incorporated with this Act and shall apply as if the same with the necessary modifications were set out in this Act (namely):—

Section 134 (Consent of Council to be in writing);

Section 135 (In executing works for owner Council not liable for damage);

Section 136 (Power to Local Government Board to direct inquiries);

Section 137 (Compensation how to be determined).

Crown rights.

**149.** Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Council to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that



purpose (which consent the said Commissioners and Board are A.D. 1913.  
hereby respectively authorised to give).

**150.** The costs charges and expenses preliminary to and Expenses of  
of and incidental to preparing and obtaining this Act including Act.  
the costs charges and expenses preliminary to and of and con-  
nected with the compliance with the requirements of the Borough  
Funds Acts 1872 and 1903 and including the costs of the  
opposition of the Isle of Thanet Council to the Bill for this  
Act shall after taxation by the taxing officer of the House of  
Lords or of the House of Commons be paid by the Council out  
of the district fund and general district rate or out of moneys  
to be borrowed by the Council under this Act.



[Ch. lxiii.] *Broadstairs and St. Peter's Urban* [3 & 4 GEO. 5.]  
*District Council Act, 1913.*

A.D. 1913. The SCHEDULES referred to in the foregoing Act.

FIRST SCHEDULE.

PREMISES OF WHICH PARTS ONLY ARE REQUIRED.

| Area.                                              | Numbers on deposited Plans.                    |
|----------------------------------------------------|------------------------------------------------|
| The urban district of Broadstairs and St. Peter's. | 5 8 10 11 12 13 15 17 22 23 24<br>25 26 27 31. |

SECOND SCHEDULE.

FORM OF MORTGAGE.

By virtue of the Broadstairs and St. Peter's Urban District Council Act 1913 and of other their powers in that behalf them enabling the Broadstairs and St. Peter's Urban District Council (hereinafter called "the Council") in consideration of the sum of pounds paid to the treasurer of the Council by (hereinafter called "the mortgagee") do hereby grant and assign unto the mortgagee [his] executors administrators and assigns such proportion of the revenues of the Council in the said Act defined as the said sum so paid doth or shall bear to the whole sum which is or shall be charged on the said revenues To hold unto the mortgagee [his] executors administrators and assigns from the day of the date of these presents until the said sum of pounds shall be fully paid and satisfied with interest for the same (subject as hereinafter provided) at the rate of per centum per annum from the day of one thousand nine hundred and until payment of the said principal sum such interest to be paid half-yearly [on the day of and the day of in each year] And it is hereby agreed that the said principal sum of pounds shall be repaid at the office of the Council in the said district [(subject as hereinafter provided) on the day of one thousand nine hundred and ] [by ]:

Provided always and it is hereby agreed and declared that the before-mentioned time for repayment may be extended to such subsequent day or days and upon any such extension the before-mentioned



rate of interest may be altered to such other rate or rates of interest as shall from time to time be mentioned and specified in an endorsement to be made hereon under the hands of the chairman and clerk of the Council for the time being respectively and that upon any such endorsement being made whether relating to extension of time only or to extension of time with alteration of rate of interest the provisions thereof shall be incorporated herewith and shall operate and take effect as though they had been originally inserted herein.

In witness whereof the Council have caused their common seal to be hereunto affixed this                      day of                      one thousand nine hundred and                      .

*The Endorsement within referred to.*

The within-named  
consenting the within-mentioned time for repayment of the within-  
mentioned principal sum of

is hereby extended to the  
day of one thousand nine hundred and  
[and the interest to be paid thereon on and  
from the day of one thousand  
nine hundred and is hereby declared to be  
at the rate of per centum per annum].

Dated this                  day of  
one thousand nine hundred and

## FORM OF TRANSFER OF MORTGAGE.

I [the within-named]  
of  
in consideration of the sum of  
pounds paid to me by  
of  
(hereinafter called "the transferee") do hereby transfer to the transferee  
his executors administrators and assigns [the within-written security]  
[the mortgage number                      of the revenues of the Broadstairs and  
St. Peter's Urban District Council bearing date the                      day of  
                                ] and all my right and interest under the  
same subject to the several conditions on which I hold the same at  
the time of the execution hereof and I the transferee for myself my  
executors administrators and assigns do hereby agree to take the said  
mortgage security subject to the same conditions.

Dated this                      day of                      one thousand  
 nine hundred and                      .



[Ch. lxiii.] *Broadstairs and St. Peter's Urban* [3 & 4 GEO. 5.]  
*District Council Act, 1913.*

A.D. 1913.

THIRD SCHEDULE.

PROVISIONS OF THE ACTS OF 1792 AND 1805 AND THE ORDER OF  
1882 SAVED FROM REPEAL.

ACT OF 1792.

Anno Tricesimo Secundo Georgii III. Regis.

CAP. LXXXVI.

An Act for repairing or rebuilding the Pier adjoining to the Harbour of Broadstairs, in the Isle of Thanet, in the County of Kent; and for the better preserving the said Harbour; and for removing and preventing Obstructions, Nuisances, and Annoyances, and regulating the Mooring of Ships and Vessels, within the said Harbour.

Preamble.

Whereas the Pier within the Hamlet of Broadstairs, in the Isle of Thanet, in the County of Kent, is become in a ruinous and decayed state, and it will require a considerable sum of money to be forthwith laid out to put the same in good repair and condition: And whereas the only fund for repairing and maintaining the said Pier arises from certain rates, droits, or customary dues, payable by the owners and masters of ships, and other vessels, making use of the Harbour of Broadstairs aforesaid; which said rates, droits, and dues have been found insufficient for effectually supporting and maintaining the same, and are not sufficiently ascertained, and there are not effectual powers to enforce the payment thereof; and it is necessary, in order to the putting the said Pier in proper repair, and to the keeping the same and the said Harbour in good repair and condition, not only that the rates, droits, or dues, payable as aforesaid, should be ascertained, and sufficient powers given for the recovery thereof, but that some further additional rates should be granted and made payable for those purposes: And whereas the said Harbour is subject to various incroachments, obstructions, and nuisances, and the laws in being are found insufficient for removing such incroachments, obstructions, and nuisances, and preventing the like for the future: And whereas it is of great consequence to the persons concerned in ships and other vessels having occasion to make use of the said Harbour, that the said Pier should be forthwith repaired or rebuilt and the said Harbour rendered safe and convenient for the reception of ships and other vessels, and that all incroachments, obstructions and nuisances in and near the said Harbour should be removed and the said Pier and Harbour kept in good repair and condition, and the doing the same would also be of benefit and convenience to the inhabitants of, and persons resorting to the said Hamlet: May it therefore please Your Majesty that it may be enacted; and be it enacted by the King's most Excellent Majesty, by and with



the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled, and by the authority of the same . . . . . A.D. 1913.

XXIV. And whereas doubts may arise touching the bounds or limits of the said Harbour, be it further enacted, that for the future the bounds and limits of the said Harbour shall and are hereby declared to be as follows: that is to say, from Fishness Point, on the land of Richard Collard, to the outer Pier Beacon, bearing east and by south, distance about four hundred and ninety-four feet; and from the said outer Pier Beacon to a boundary post, bearing north-east by east, distance about seven hundred and seventy-eight feet; and from thence to another post, bearing north-east by north, distance about three hundred and seventy-seven feet; and from thence to a post under the cliff adjoining the lands of John Dilnot, Esquire, bearing north-west by west half west, distance about four hundred and fifty-five feet; and round the cod of the bay, of which the said Harbour is formed, as marked by a post already fixed as the boundary between the said Harbour and the extremity of the lands of Thomas Blackburn, John White, Robert Witherden, James Cummins, John Holmes, James Gubbins, John Fenner, John Gray, Stephen Philpot, Stephen Nuckell, and Richard Collard.

Limits of the  
harbour  
ascertained.

XXXI. And be it further enacted, that it shall be lawful for the said Commissioners to treat and agree with the owners and occupiers of, and all other persons interested in any lands which the said Commissioners shall think necessary to purchase for improving or securing of the said Pier or Harbour and out of the money arising by virtue of this Act to pay the purchase money for the same, and to take a conveyance of the land so purchased to such person or persons, and his or their heirs, as the said Commissioners shall direct, in trust to be made use of for the purpose aforesaid, in such manner as the said Commissioners shall think proper.

Power to  
purchase  
land.

XLI. Provided always, and be it further enacted, that nothing in this Act contained shall prejudice, lessen, defeat or affect the rights or interests of the Lady of the Manor of Minster, within the Isle of Thanet aforesaid, of, in, or to any seigniories, royalties, or privileges incident and belonging to the said manor but that the present Lady of the said Manor, and also every future Lady or Lord of the said Manor, shall at all times have, hold, exercise, and enjoy all rights, royalties, jurisdiction, and privileges, in as full, ample, and beneficial manner, to all intents and purposes, as she or he would have done in case this Act had not been made.

Manorial  
rights saved.

XLII. And be it further enacted, that this Act shall be deemed and taken to be a Publick Act; and shall be judicially taken notice of as such, by all Judges, Justices, and other persons, without specially pleading the same.

Publick Act.



[Ch. lxiii.] *Broadstairs and St. Peter's Urban* [3 & 4 GEO. 5.]  
*District Council Act, 1913.*

A.D. 1913.

ACT OF 1805.

Anno Quadragesimo Quinto. Georgii III. Regis.

CAP. 102.

An Act for amending an Act passed in the Thirty-second Year of His present Majesty for repairing or rebuilding the Pier adjoining to the Harbour of Broad Stairs in the Isle of Thanet in the County of Kent. (10th July 1805.)

Preamble.

Whereas an Act was passed in the Thirty-second year of His present Majesty, intituled an Act for repairing or rebuilding the Pier adjoining to the Harbour of Broad Stairs, in the Isle of Thanet in the County of Kent, for the better preserving the said Harbour, and for removing and preventing obstructions, nuisances, and annoyances, and regulating the moorings of ships and vessels within the said Harbour: And whereas the Commissioners appointed or elected by the said recited Act have made considerable improvements and erections within the said Harbour, and for such purposes have borrowed a considerable sum of money on the credit of the rates thereby granted, which money cannot be repaid, nor the several works directed by the said recited Act to be made be completed, nor can the works already made, many of which are much out of repair, be repaired, maintained, or supported, unless such rates are increased, and further provisions made for carrying the purposes of the said recited Act into execution. May it therefore please Your Majesty that it may be enacted; and be it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same. That the said recited Act, made in the Thirty-second year of the reign of His present Majesty, and all and every the clauses, powers, penalties, forfeitures, rates, remedies, payments, provisions, articles, matters, and things whatsoever therein contained (save and except such parts thereof as are hereby varied, altered or repealed), shall be as good, valid and effectual for carrying this Act into execution as if the same had been repeated or re-enacted in the body of this present Act.

New rates  
granted with  
reference to  
the table  
annexed.

VI. And be it further enacted, that in lieu and instead of the said several mentioned rates and duties by this Act repealed there shall be paid by every person whomsoever (not being an alien or merchant stranger) who shall lade or unlade, or import or export, any grain, seeds, goods, wares, merchandizes, baggage, parcel, or other article, matter, or thing whatsoever, within the said Harbour of Broad Stairs or the Bay thereunto adjoining, or within the limits of the said Harbour, over and above all other rates and duties to which the same respectively are, by virtue of any law or Statute, subject or liable, the several rates and duties hereinafter mentioned; that is to say:



[3 & 4 GEO. 5.] *Broadstairs and St. Peter's Urban* [Ch. lxiii.]  
*District Council Act, 1913.*

The master of every ship, hoy, boat, or other vessel into or from A.D. 1913.  
which shall be laden or unladen, taken on board or discharged, Other rates  
within the said Harbour or the Bay thereunto adjoining, or payable.  
within the limits of the said Harbour, any wheat, meal, rye,  
barley, peas, beans, tares, malt, oats, or seeds of any kind,  
carried or to be carried from port to port within this realm,  
such master being a native of the United Kingdom of Great  
Britain and Ireland, and an inhabitant of any of the Cinque  
Ports, two ancient towns or their Members, commonly called or  
denominated a Portsman, shall pay for every quarter of such  
wheat, meal, rye, barley, peas, beans, tares and seeds the sum  
of twopence; and for every quarter of such malt or oats two-  
pence; and the master of every such ship, hoy, or vessel, being  
a native of the said United Kingdom, and not inhabiting any  
of the Cinque Ports, two ancient towns or their Members, but  
being an inhabitant of any other port of the said United King-  
dom, commonly called or denominated a Shireman, shall pay for  
every quarter of such wheat, meal, rye, barley, peas, beans, tares  
and seeds the sum of threepence, and for every quarter of such  
oats or malt, threepence; and over and above and in addition  
to such respective rates, the master of every ship, hoy or other  
vessel into or from which shall be laden or unladen, taken on  
board or discharged, within the said Harbour or the Bay there-  
unto belonging, or brought through or within the limits of  
the said Harbour, any goods, wares, merchandizes or other things,  
or any passengers or passenger carried or to be carried, or  
passing or to pass from port to port within this realm, such  
master being a Portsman as aforesaid, shall pay the sum of  
fourpence in every twenty shillings of the amount of the freight  
of such goods, wares, merchandizes, and other things, and of  
the fare or fares of such passenger or passengers; and every such  
master, being or denominated a Shireman as aforesaid, shall pay  
the sum of sixpence in every twenty shillings of the amount  
of such freight, and the fare or fares of such passenger or  
passengers; and the master of every such ship, hoy, or other  
vessel, being an alien or merchant stranger, shall pay treble  
the respective rates hereinbefore made payable by a Portsman:  
And the master of every ship, hoy, or other vessel into or from  
which shall be laden or unladen, taken on board or discharged,  
within the said Harbour or the Bay thereunto adjoining, or  
brought through or within the limits of the said Harbour any  
wheat, meal, rye, barley, beans, tares, malt, oats, or seeds of  
any kind, carried from or to be carried to any Port beyond the  
seas, such master being or dominated a Portsman, shall pay for  
every quarter of such wheat, meal, rye, barley, peas, beans,



[Ch. lxiii.] *Broadstairs and St. Peter's Urban* [3 & 4 GEO. 5.]  
*District Council Act, 1913.*

A.D. 1913.  
—

tares and seeds the sum of twopence; and for every quarter of such malt or oats the sum of twopence; and such master, being a Shireman as aforesaid, shall pay for every quarter of such wheat, meal, rye, barley, peas, beans, tares, and seeds the sum of threepence, and for every quarter of malt or oats the sum of threepence; and the master of every such ship, hoy, or vessel as aforesaid, being an alien or merchant stranger, shall pay treble the respective rates so made payable by a Portsman as hereinbefore last mentioned; and over and above and in addition to such respective rates so made payable for wheat, meal, rye, barley, peas, beans, tares, malt, oats, and seeds carried from or to be carried from parts beyond the seas, the master of every such ship, hoy, or other vessel into or from which shall be laden or unladen, taken on board or discharged, within the said Harbour or the Bay thereunto adjoining, or within the limits of the said Harbour, or brought through the same, any goods, wares, merchandize, or other things, or any passenger or passengers passing or to pass, or carried or to be carried, from or to any part or parts beyond the seas, such master being a Portsman as aforesaid, shall pay the sum of threepence in every twenty shillings of the amount of the freight of such goods, wares, merchandize, and other things, and of the fare or fares of such passenger or passengers; and the master of every such ship, hoy, or vessel as aforesaid, being a Shireman as aforesaid, shall pay the sum of fourpence in every twenty shillings of the amount of the freight of such goods, wares, merchandize, and other things, and of the fare or fares of such passenger or passengers; and the master of every such ship, hoy, or vessel as aforesaid, being an alien or merchant stranger, shall pay the sum of sixpence in every twenty shillings of the amount of the freight of such goods, wares, merchandize, and other things, and of the fare or fares of such passenger or passengers respectively; and all such masters shall be subject and liable to the said rates and duties according to the common or usual freight paid for such goods, wares, merchandize, and other things, and according to the common or usual fare or fares paid for or in respect of such passenger or passengers, whether such freight, or fare or fares, shall or shall not be charged by such masters respectively; and the owner of any corn, grain, and seeds which shall have grown or been put into any barn or barns out of the jurisdiction of the Cinque Ports, two ancient towns or their Members (not being malted by a Portsman as aforesaid), which shall be shipped in the said Harbour or the Bay adjoining thereto, or within the limits of the said Harbour, on board any ship, hoy, or other vessel



A.D. 1913.

which shall belong to or usually or commonly harbour at Broad Stairs aforesaid, such owner being a Portsman, shall pay the like rates for the same as if such owner was a Shireman :

And every merchant, brewer, and other person, whether a native of the United Kingdom of Great Britain and Ireland or not, on whose account shall be laden or unladen any kind of goods, wares, merchandizes, or other things into or out of any ship, hoy, or vessel, the owner or owners of which ship, hoy, or vessel is or are an alien or aliens, or foreigner or foreigners, shall pay the rates herein made payable in respect of the like kind of goods, wares, merchandizes, or other things, laden or unladen by any alien or merchant stranger :

And the master of every ship, hoy, or other vessel belonging to or using the said Harbour, which shall trade beyond the seas upon the adventure of the owner or owners thereof, or freighted either by subjects of the United Kingdom or by aliens or merchant strangers, shall, over and above the respective rates before mentioned, pay for every voyage from port to port within this realm by or with his ship, hoy or other vessel, being of the burthen of forty tons or upwards, the sum of two shillings, and being of less burthen than forty tons the sum of one shilling and four pence, and for every voyage to any port in the Austrian or Dutch Netherlands, or in Denmark, Norway or the Baltic or in the kingdom of France, by or with any such ship, hoy or other vessel, being of the burthen of forty tons or upwards, the sum of five shillings, and being of less burthen than forty tons, the sum of two shillings and for every voyage to any other place beyond the seas by or with any such ship or vessel, of whatsoever burthen, the sum of ten shillings :

And the master or owner of every ship, hoy or other vessel from which any coals, culm, splint, coke, cinder, or charcoal shall be landed or delivered within the said Harbour, or within any place, in the said Parish of Saint Peter, shall pay for all such coal, culm, splint, coke, cinder, or charcoal, the sum of two shillings per chaldron of thirty-six bushels, Winchester measure, and so in proportion for any less quantity than a chaldron ; and for all such coals, culm, splint, coke, or cinders as are usually sold by the ton, the sum of one shilling and sixpence per ton, and so in proportion for any less quantity than a ton ; and for the purposes of this Act each ton weight shall consist of twenty hundred weight, and each hundred weight shall consist of one hundred and twelve pounds avoirdupois :

And it shall and may be lawful to and for the said Commissioners to demand, take, collect, and receive, from all and every person and persons bringing or causing to be brought within or through



[Ch. lxiii.] *Broadstairs and St. Peter's Urban* [3 & 4 GEO. 5.]  
*District Council Act, 1913.*

A.D. 1913.

the said Hamlet of Broad Stairs, or any part of the said parish of Saint Peter, in the Isle of Thanet, any coals, culm, splint, coke, or cinders by land carriage, upon which no duty shall have been paid by virtue of this Act, the additional sum of one shilling for each and every chaldron or ton of coals, culm, splint, coke, or cinders, and so in proportion for a greater or less quantity than a chaldron or a ton :

And every merchant and other person on whose account any goods, wares, merchandizes or other articles, matters or things, shall be laden or unladen, imported or exported, within or from the said Harbour of Broad Stairs or the Bay thereunto adjoining, or within or from the limits of the said Harbour, shall, over and above all other rates made for or in respect of the same, as hereinbefore mentioned or directed, pay the several rates particularly mentioned and specified in the Schedule to this Act annexed, and it shall and may be lawful to and for the said Commissioners to demand, take, collect and receive, or cause to be demanded, taken, collected and received, the several rates in the said Schedule expressed and specified, from every merchant and other person on whose goods, wares, merchandizes or other articles, matters or things, shall be laden or unladen, imported within or exported from the said Harbour of Broad Stairs or the Bay thereunto adjoining, or within or from the limits of the said Harbour :

And the master of every ship, hoy or vessel into or from which any goods, wares, merchandize or other things shall be laden or unladen within the said Harbour or the Bay thereunto adjoining, or within the limits of the said Harbour, for or upon the account of any alien or merchant stranger, shall, in respect thereof, pay treble the respective rates in the said Schedule made payable by a Portsman as aforesaid for or in respect of the same kind of goods, wares, merchandize, or things, except only for or in respect of such articles or things where the rates payable for the same by an alien or merchant stranger are expressly mentioned and specified in the said Schedule :

And the master of every fishing boat belonging to the said Hamlet or, which shall harbour in the said Harbour for the greatest part of the year, or for the greatest part of any fishing season, shall pay for every mackarel, herring, cod, trauling, sprat or other fishing season, the sum of fourpence out of every twenty shillings of the net profits of the earnings by means of every such boat in every such season, whether such profits shall arise from fish caught or purchased and carried to any market, such payment to be made before any division shall be made of any such profits amongst the several persons concerned or interested



in any such boat; and the master of every fishing boat not usually rigging or harbouring within the said Harbour shall pay, during every mackarel, herring, cod, trawling, sprat or other fishing season, for every time such boat shall come within the said Harbour, if such boat shall not exceed the burthen of ten tons, the sum of ninepence, and if such boat shall exceed the burthen of ten tons, the sum of one shilling and sixpence: A.D. 1913.

And the master of every ship, hoy, or other vessel which shall come into the said Harbour for succour or shelter, and shall not lade or unlade his ship, hoy, or other vessel therein, shall pay, for every time his ship, hoy, or other vessel shall come within the said Harbour, according to the burthen of such ship, hoy, or vessel, the several rates following (that is to say) if such ship, hoy, or other vessel shall not exceed ten tons burthen, the sum of ninepence; and if ten tons, and shall not exceed twenty tons, the sum of two shillings; and if such ship, hoy, or other vessel shall exceed twenty tons, and shall not exceed thirty tons, the sum of three shillings; and if such ship, hoy, or other vessel shall exceed thirty tons, and shall not exceed forty tons, the sum of four shillings; and if such ship, hoy, or other vessel shall exceed forty tons and shall not exceed fifty tons, the sum of five shillings; and if such ship, hoy, or other vessel shall exceed fifty tons and shall not exceed sixty tons, the sum of seven shillings; and for every additional ten tons burthen of such ship, hoy, or other vessel exceeding such sixty tons, the sum of one shilling and sixpence, in addition to the said sum of seven shillings; and in case any ship, hoy, or other vessel shall continue within the said harbour for a longer space of time than one calendar month, then and in every such case the master thereof shall pay the like rate or rates for each and every month he shall continue within the said Harbour; and the owner of every boat or vessel kept for pleasure being usually kept and considered as belonging to the said Harbour, shall pay after the rate of two shillings per ton (of the real admeasurement thereof) per annum, if such boat or vessel shall exceed five tons burthen, and if such boat or vessel shall not exceed five tons burthen, the gross sum of seven shillings per annum; and such several sums shall be paid quarterly, and shall always be paid up to the Quarter-day immediately succeeding the sale or disposal of any such boat or vessel:

And the owner of every vessel kept for pleasure, exceeding five tons burthen, which shall come into the said harbour, not being usually kept at or considered as belonging thereto, shall pay at the like rate as other ships, boats or vessels, or in proportion



[Ch. lxiii.] *Broadstairs and St. Peter's Urban* [3 & 4 GEO. 5.]  
*District Council Act, 1913.*

A.D. 1913.

to pleasure boats belonging to the said Harbour, at the option of the owner or owners thereof:

And the owner of every ship, boat, or vessel that shall be built or launched at the said Harbour, if exceeding ten tons burthen, shall pay after the rate of ninepence per ton; and in case such ship, boat or vessel shall not exceed ten tons and not less than five tons burthen, the gross sum of four shillings; and in case such ship, boat, or vessel shall be less than five tons burthen, the gross sum of two shillings:

And the master of every ship, hoy, or other vessel which shall take on board any ballast within the said Harbour or the Bay thereunto adjoining, or within the limits of the said Harbour (entering therein for that purpose, and not having delivered any cargo at Broad Stairs aforesaid), shall pay the sum of sixpence for every ton of such ballast.

Boats employed to assist vessels in distress to pay a certain proportion of their profits.

VII. And be it further enacted, that the master or owner of every boat, hoy or vessel belonging to the said Hamlet or Harbour of Broad Stairs, or the said Parish of Saint Peter, which shall be employed for the purpose of assisting any ship or vessel cast away or out of its course, or otherwise in distress at sea or in taking up any goods wrecked at sea or upon the main, or any anchor or cable found at sea, shall pay one half part of one equal share of the profits arising thereby, whether such ship, vessel, goods, anchor or cable shall be brought into the said Harbour or the Bay thereunto adjoining, or within the limits of the said Harbour or not, and such half part of the profits shall be paid to the Collector of the said Commissioners or other persons authorized by the said Commissioners to receive the same before any division shall be made of the earnings upon any such occasion, and the person who shall pay any such half part of such share shall at the same time deliver to the collector, or other person as aforesaid receiving the same, an account in writing, signed by such master or owner, of the whole amount of such earnings as aforesaid, and of the number of shares into which the same is divisible or to be divided, and of the necessary charges and expenses as the parties concerned in such service shall have been at on account thereof; and if any such master or owner shall wilfully deliver a fraudulent or erroneous account to such collector or other person as aforesaid, then and in every such case he shall, over and above payment of such half part of the share so made payable as aforesaid, forfeit and pay any sum not exceeding such half part.

The part of the profits of boats assisting ships in

VIII. Provided always, and be it enacted, that the said rate of one-half part of one share of the profits arising from any boat or vessel being employed for the purpose of assisting any ship or vessel cast



[3 & 4 GEO. 5.] *Broadstairs and St. Peter's Urban* [Ch. Ixiii.]  
*District Council Act, 1913.*

away or out of its course, or otherwise in distress, or in taking up any wrecked goods, or any anchor or cable, as aforesaid, shall and may, if the said Commissioners think proper, be recovered from the person or persons liable to the payment thereof, by action of debt or on the case, in any of His Majesty's Courts of Record at Westminster, in the name of the treasurer or clerk to the said Commissioners.

A.D. 1913.  
distress, &c.  
may be re-  
covered by  
action at law.

IX. And be it further enacted, that from and after the passing of this Act every ship, hoy, or vessel, whether cast away or out of its course or not, which shall be abandoned at sea, or which shall be boarded in consequence of a signal or hailing, whether under sail or driving, shall be deemed and taken to be in distress within the true intent and meaning of this Act.

What vessel  
shall be  
deemed in  
distress.

X. And be it further enacted, that it shall and may be lawful to and for the said Commissioners and their successors to ascertain and fix such reasonable rates and duties to be paid upon the lading or unlading, importing or exporting, of any article or commodity not specified or enumerated in the table or schedule to this Act annexed, in proportion to the several rates and duties therein specified, as they shall think fit, so as no such rate or duty shall exceed the sum of sixpence in every twenty shillings on the amount of the freight of such article or commodity; which rates and duties, when so fixed and ascertained by the said Commissioners shall be paid to the said Commissioners or to their collector, or other person or persons appointed to receive and collect the same; and the same shall and may be received, levied, and collected by such ways and means as if the same had been especially enumerated in this Act, or in the said table or schedule hereunto annexed.

Power to fix  
like reason-  
able rates on  
articles not  
specified.

XI. And be it further enacted, that if any subject of the said United Kingdom shall, upon any account or pretence whatsoever, take upon himself or herself to own, or presume or pretend to have assumed the risque of any goods, wares, or merchandizes which shall not *bonâ fide* be laden or unladen, imported or exported, for account of and at the risque of him or her, but for or on account of or at the risque of an alien or aliens, foreigner or foreigners, with intent to defraud the said Commissioners and their successors of the rates and duties imposed or to be imposed by virtue of this Act on goods, wares and merchandizes, laden or unladen, imported or exported by an alien or merchant stranger as aforesaid, every such subject of the said United Kingdom so offending shall for every such offence forfeit and pay double the rates or duties chargeable by this Act for such goods, wares or merchandizes; and such penalty and forfeiture shall and may be recovered, with double costs of suit, by action of debt, bill, plaint or information, in any of His Majesty's Courts of Record

No subject of  
the United  
Kingdom to  
cover alien  
goods.



[Ch. lxiii.] *Broadstairs and St. Peter's Urban* [3 & 4 GEO. 5.]  
*District Council Act, 1913.*

A.D. 1913. at Westminster, wherein no essoign, protection or wager of law, or more than one imparlance shall be allowed.

Wrecked and other goods having paid duties when brought in to pay upon being re-shipped for account of same owners or insurers one half the rates only.

XII. Provided always, and be it enacted, that in case any goods, wares, or merchandize wrecked at sea or upon the main, or which shall be landed or unladen and brought into and delivered within the said Harbour or Bay of Broad Stairs or within the limits of the said Harbour (being the property of an alien or merchant stranger), and all the rates payable by virtue of this Act for the importing or unlading of such goods, wares and merchandize respectively within the said Harbour or Bay, or within the limits of the said Harbour, shall have been duly paid and discharged, and such goods, wares or merchandize shall afterwards be required to be reshipped or reladen upon the account of the same owner or same respective owners of such goods, wares, and merchandize respectively, or upon the account of the insurer or respective insurers thereof, on board of any ship, hoy or other vessel, without any sale or agreement for the sale of such goods, wares or merchandize respectively having in the meantime taken place, then and in every such case, on due proof made before the said Commissioners of the payment of the rates and duties imposed by virtue of this Act on the importing or unlading of such goods, wares and merchandize respectively, by the oath of one or more witness or witnesses (which oath the said Commissioners, or any two of them, are hereby authorized to administer), the said Commissioners shall and they are hereby required to permit the reshipping or relading such goods, wares, and merchandize respectively, upon payment of one moiety or half part of the rates and duties that might otherwise be demanded and taken by virtue of this Act for or in respect of the reshipping or relading of such goods, wares, and merchandize respectively; anything in this Act contained to the contrary thereof in anywise notwithstanding.

Public Act.

XIX. And be it further enacted, that this Act shall be deemed and taken to be a public Act, and shall be judicially taken notice of as such by all judges, justices, and others, without being specially pleaded.

THE TABLE OR SCHEDULE OF RATES REFERRED TO IN AND BY THIS ACT.

|                                                                                                                                             | £ | s. | d.    |
|---------------------------------------------------------------------------------------------------------------------------------------------|---|----|-------|
| For every quarter of wheat, oats, malt, meal, rye, barley, beans, peas, tares, and seeds, of every denomination, the property of a portsman | - | -  | 0 0 2 |
| For every quarter of ditto, the property of a shireman                                                                                      | - | 0  | 0 3   |
| For every quarter of ditto, the property of an alien or merchant stranger                                                                   | - | 0  | 0 6   |
| For every barrel containing any beer or ale, the property of a British subject                                                              | - | 0  | 0 6   |



[3 & 4 GEO. 5.] *Broadstairs and St. Peter's Urban* [Ch. lxiii.]  
*District Council Act, 1913.*

|                                                                                                                            | £ | s. | d. | A.D. 1913. |
|----------------------------------------------------------------------------------------------------------------------------|---|----|----|------------|
| For every barrel of beer or ale, the property of an alien or merchant stranger - - - - -                                   | 0 | 1  | 6  |            |
| For every barrel, wet or dry, the property of an alien or merchant stranger - - - - -                                      | 0 | 1  | 6  |            |
| For every half-barrel of ditto - - - - -                                                                                   | 0 | 0  | 3  |            |
| For every firkin, wet or dry - - - - -                                                                                     | 0 | 0  | 2  |            |
| For every tun of wine or sweet oil - - - - -                                                                               | 0 | 6  | 0  |            |
| For every other cask of ditto in proportion.                                                                               |   |    |    |            |
| For every dozen of wine in bottles - - - - -                                                                               | 0 | 0  | 2  |            |
| For every pipe, wet or dry - - - - -                                                                                       | 0 | 2  | 0  |            |
| For every puncheon of spirits - - - - -                                                                                    | 0 | 2  | 6  |            |
| For every solid hogshead of raw sugar - - - - -                                                                            | 0 | 1  | 6  |            |
| For every hogshead of loaf sugar, per cwt. - - - - -                                                                       | 0 | 0  | 2  |            |
| For every hogshead of tobacco - - - - -                                                                                    | 0 | 1  | 6  |            |
| For every hogshead, wet or dry - - - - -                                                                                   | 0 | 0  | 9  |            |
| For every barrel of train or fish oil - - - - -                                                                            | 0 | 0  | 6  |            |
| For every great dry vat - - - - -                                                                                          | 0 | 2  | 6  |            |
| For every small dry vat - - - - -                                                                                          | 0 | 1  | 3  |            |
| For every great bale above 27 feet cube - - - - -                                                                          | 0 | 2  | 0  |            |
| For every small bale in proportion.                                                                                        |   |    |    |            |
| For every case above 27 feet cube - - - - -                                                                                | 0 | 1  | 0  |            |
| For every pack of wool, yarn, or cotton, containing two hundred and forty pounds weight - - - - -                          | 0 | 1  | 6  |            |
| For every large or small packet of ditto in proportion.                                                                    |   |    |    |            |
| For every bag of feathers of sixty pounds weight - - - - -                                                                 | 0 | 0  | 6  |            |
| For larger or smaller bags thereof in proportion.                                                                          |   |    |    |            |
| For every small frail maund, or basket - - - - -                                                                           | 0 | 0  | 2  |            |
| For every great maund or basket - - - - -                                                                                  | 0 | 0  | 4  |            |
| For every piece of ordnance brass or iron per cwt. - - - - -                                                               | 0 | 0  | 3  |            |
| For every anchor or cable per cwt. - - - - -                                                                               | 0 | 0  | 2  |            |
| For every hundred weight of copper or brass, unwrought - - - - -                                                           | 0 | 0  | 4  |            |
| For every hundred weight of ditto wrought (copper or brass) - - - - -                                                      | 0 | 0  | 6  |            |
| For every hundred weight of lead - - - - -                                                                                 | 0 | 0  | 2  |            |
| For every hundred weight of wrought pewter - - - - -                                                                       | 0 | 0  | 6  |            |
| For every hundred weight of old pewter - - - - -                                                                           | 0 | 0  | 4  |            |
| For every hundred weight of tin - - - - -                                                                                  | 0 | 0  | 4  |            |
| For every one hundred weight of iron or of nail rods - - - - -                                                             | 0 | 0  | 2  |            |
| For every chaldron or ton (as usually sold) of coals, culm, splint, coak, or cinders, the property of a portsman - - - - - | 0 | 2  | 2  |            |
| The like the property of a shireman - - - - -                                                                              | 0 | 2  | 3  |            |
| For every chaldron of breeze or coal ashes - - - - -                                                                       | 0 | 0  | 4  |            |
| For every ton of salt - - - - -                                                                                            | 0 | 1  | 8  |            |
| For every hundred weight of tallow - - - - -                                                                               | 0 | 0  | 2  |            |
| For every thousand of oil cakes - - - - -                                                                                  | 0 | 2  | 6  |            |



[Ch. lxiii.] *Broadstairs and St. Peter's Urban* [3 & 4 GEO. 5.]  
*District Council Act, 1913.*

A.D. 1913.

|                                                                                                      | £ | s. | d. |
|------------------------------------------------------------------------------------------------------|---|----|----|
| For every hundred of cod called sized fish - - -                                                     | 0 | 1  | 0  |
| For every barrel of red herrings - - -                                                               | 0 | 0  | 3  |
| For every one hundred of cod called the small sort - - -                                             | 0 | 0  | 6  |
| For every bushel or firkin of oysters - - -                                                          | 0 | 0  | 2  |
| For every barrel of oysters less than a firkin - - -                                                 | 0 | 0  | 1  |
| For every kit of pickled salmon - - -                                                                | 0 | 0  | 2  |
| For every load of lime, loose or in packages - - -                                                   | 0 | 0  | 4  |
| For every hundred of one inch and a quarter deal boards<br>from ten to fourteen feet in length - - - | 0 | 1  | 6  |
| And for every hundred of other deals in like proportion.                                             |   |    |    |
| For every thousand of barrel boards or staves - - -                                                  | 0 | 2  | 0  |
| And for every thousand of other barrel boards or staves in<br>like proportion.                       |   |    |    |
| For every hundred of clove boards or battens - - -                                                   | 0 | 1  | 6  |
| For every mast from 20 to 15 inches diameter - - -                                                   | 0 | 8  | 0  |
| For every mast from 15 to 12 diameter - - -                                                          | 0 | 4  | 0  |
| For every mast from 12 to 10 diameter - - -                                                          | 0 | 2  | 0  |
| For every spar of 7, 8 or 9 inches diameter - - -                                                    | 0 | 0  | 6  |
| For every spar of 4, 5 or 6 inches diameter - - -                                                    | 0 | 0  | 3  |
| For every score of small spars - - -                                                                 | 0 | 1  | 0  |
| For every cord of wood or one hundred of faggots - - -                                               | 0 | 0  | 6  |
| For every fathom of six feet lath wood - - -                                                         | 0 | 1  | 0  |
| For every fathom of five feet ditto - - -                                                            | 0 | 0  | 9  |
| For every ton of oak, elm, or other timber - - -                                                     | 0 | 1  | 6  |
| For every load of posts and rails - - -                                                              | 0 | 1  | 0  |
| For every load of oak or elm boards - - -                                                            | 0 | 2  | 0  |
| For every thousand of cleft paling - - -                                                             | 0 | 1  | 6  |
| For every twenty bundles of laths - - -                                                              | 0 | 0  | 6  |
| For every bundle of hoops - - -                                                                      | 0 | 0  | 1  |
| For every small cask empty, not returned - - -                                                       | 0 | 0  | 2  |
| For every great cask empty, not returned - - -                                                       | 0 | 0  | 4  |
| For every small trunk, chest or box - - -                                                            | 0 | 0  | 2  |
| For every large trunk, chest or box, under 27 feet cube - - -                                        | 0 | 0  | 4  |
| For every crate of window glass - - -                                                                | 0 | 0  | 6  |
| For every crate of glassware - - -                                                                   | 0 | 0  | 9  |
| For every crate of earthenware - - -                                                                 | 0 | 0  | 9  |
| For every small crate of earthenware - - -                                                           | 0 | 0  | 4  |
| For every small bundle or parcel - - -                                                               | 0 | 0  | 1  |
| For every load of hay of thirty-six trusses - - -                                                    | 0 | 3  | 0  |
| For every load of straw - - -                                                                        | 0 | 1  | 6  |
| For every pocket of hops - - -                                                                       | 0 | 0  | 6  |
| For every bag of hops - - -                                                                          | 0 | 1  | 0  |
| For every sack of five bushels of flour - - -                                                        | 0 | 0  | 3  |
| For every sack or bag of eight bushels of bran - - -                                                 | 0 | 0  | 2  |



[3 & 4 GEO. 5.] *Broadstairs and St. Peter's Urban* [Ch. lxiii.]  
*District Council Act, 1913.*

|                                                                                           | £ | s. | d. | A.D. 1913. |
|-------------------------------------------------------------------------------------------|---|----|----|------------|
| For every thousand of bricks or plain tiles - - - - -                                     | 0 | 1  | 0  | —          |
| For every thousand of top ridge, gutter or pan tiles or mathe-<br>matical tiles - - - - - | 0 | 1  | 6  |            |
| For every thousand of paving tiles - - - - -                                              | 0 | 2  | 0  |            |
| For every hundred feet superficial of York, Newcastle or other<br>paving stones - - - - - | 0 | 0  | 6  |            |
| For every ton of Portland, Purbeck or other stones - - - - -                              | 0 | 1  | 0  |            |
| For every thousand of slates sold by the thousand - - - - -                               | 0 | 0  | 8  |            |
| And for all slates sold in any other way in proportion.                                   |   |    |    |            |
| For every ton of marble - - - - -                                                         | 0 | 2  | 0  |            |
| For every grindstone, per foot diameter - - - - -                                         | 0 | 0  | 2  |            |
| For every common cartload of bolder or flint stones - - - - -                             | 0 | 0  | 4  |            |
| For every common cartload of chalk stones, rough or hewn - - - - -                        | 0 | 0  | 2  |            |
| For every common cartload of chalk rubbish, or any other<br>kind of rubbish - - - - -     | 0 | 0  | 2  |            |
| For every great millstone - - - - -                                                       | 0 | 2  | 0  |            |
| For every small millstone - - - - -                                                       | 0 | 1  | 0  |            |
| For every tombstone (not being of marble) - - - - -                                       | 0 | 2  | 6  |            |
| For every marble tombstone - - - - -                                                      | 0 | 5  | 0  |            |
| For every corpse - - - - -                                                                | 0 | 10 | 6  |            |
| For every one hundred weight of cheese - - - - -                                          | 0 | 0  | 4  |            |
| For every side of bacon - - - - -                                                         | 0 | 0  | 3  |            |
| For every sack of three bushels of potatoes, apples, or pears - - - - -                   | 0 | 0  | 2  |            |
| For every bushel of onions - - - - -                                                      | 0 | 0  | 2  |            |
| For every one hundred cabbages - - - - -                                                  | 0 | 0  | 4  |            |
| For every barrel of pitch or tar - - - - -                                                | 0 | 0  | 4  |            |
| For every ton of barilla - - - - -                                                        | 0 | 2  | 0  |            |
| For every ton of kelp - - - - -                                                           | 0 | 1  | 6  |            |
| For every hundred weight of hemp cordage - - - - -                                        | 0 | 0  | 3  |            |
| For every large bolt of canvas - - - - -                                                  | 0 | 0  | 4  |            |
| For every small bolt of canvas - - - - -                                                  | 0 | 0  | 2  |            |
| For every hide, raw or tanned - - - - -                                                   | 0 | 0  | 3  |            |
| For every dozen of goats, calf, sheep, or lamb skins - - - - -                            | 0 | 0  | 4  |            |
| For every hawk - - - - -                                                                  | 0 | 0  | 6  |            |
| For hares, pheasants, and all other game, each - - - - -                                  | 0 | 0  | 2  |            |
| For every calf - - - - -                                                                  | 0 | 1  | 0  |            |
| For every dog - - - - -                                                                   | 0 | 0  | 3  |            |
| For every fox - - - - -                                                                   | 0 | 0  | 6  |            |
| For every horse - - - - -                                                                 | 0 | 2  | 6  |            |
| For every four-wheeled carriage - - - - -                                                 | 0 | 5  | 0  |            |
| For every two-wheeled carriage - - - - -                                                  | 0 | 2  | 0  |            |
| For every sedan chair - - - - -                                                           | 0 | 1  | 0  |            |
| For every stove or grate - - - - -                                                        | 0 | 0  | 4  |            |
| For every double chest of drawers - - - - -                                               | 0 | 0  | 9  |            |
| For every single ditto - - - - -                                                          | 0 | 0  | 5  |            |



[Ch. lxiii.] *Broadstairs and St. Peter's Urban* [3 & 4 GEO. 5.]  
*District Council Act, 1913.*

A.D. 1913.

|                                                                                                                                                 |   |   |   |   |   | £ | s. | d. |
|-------------------------------------------------------------------------------------------------------------------------------------------------|---|---|---|---|---|---|----|----|
| For every mahogany chair                                                                                                                        | - | - | - | - | - | 0 | 0  | 2  |
| For every other chair                                                                                                                           | - | - | - | - | - | 0 | 0  | 1  |
| For every mahogany table                                                                                                                        | - | - | - | - | - | 0 | 0  | 4  |
| For every other table                                                                                                                           | - | - | - | - | - | 0 | 0  | 5  |
| For every bedstead                                                                                                                              | - | - | - | - | - | 0 | 0  | 3  |
| For every sofa                                                                                                                                  | - | - | - | - | - | 0 | 0  | 9  |
| For every harpsichord                                                                                                                           | - | - | - | - | - | 0 | 3  | 0  |
| For every spinet or pianoforte                                                                                                                  | - | - | - | - | - | 0 | 2  | 0  |
| For every bathing machine, per annum, using the Harbour of<br>Broad Stairs or the Bay thereunto belonging, or the limits<br>of the said Harbour | - | - | - | - | - | 0 | 2  | 6  |

ORDER OF 1882.

Order for the improvement and regulation of Broadstairs Pier and the construction of new works.

Order to be  
read with  
Acts of 32  
Geo III. cap.  
86 and 45  
Geo. III.  
cap. 102.

1. This Order shall be construed with the Act Thirty-second George the Third, Chapter Eighty-six, intituled an Act for repairing or rebuilding the Pier adjoining to the Harbour of Broadstairs, in the Isle of Thanet, in the County of Kent, and for better preserving the said Harbour and for removing and preventing obstructions, nuisances and annoyances, and regulating the mooring of ships and vessels within the said Harbour (in this Order called the Act of 1792) and with the Act Forty-fifth George the Third, Chapter one hundred and two, intituled an Act for amending an Act passed in the thirty-second year of His present Majesty, for repairing or rebuilding the Pier adjoining to the Harbour of Broadstairs, in the Isle of Thanet, in the County of Kent (in this Order called the Act of 1805), and those Acts (in this Order called The Harbour Acts) as amended and varied by this Order, and this Order shall be read and construed together as one Act or Order.

Lifeboat  
crew exempt  
from tolls.

20. All persons going to or returning from any lifeboat, or using any apparatus for saving life, and being persons either belonging to the crew of lifeboat or to the coastguard, or being persons for the time being actually employed in saving life, or in exercising or using the lifeboat, or the apparatus for saving life, and also all persons brought ashore from any vessel in distress, shall at all times have free ingress, passage, and egress, to or along and from the harbour, piers and works, without payment.

Life-saving  
apparatus  
may be  
attached to  
works.

21. The officers of the coastguard and all other persons for the time being actually employed in connection with the lifeboat or the apparatus for saving life may, either permanently or temporarily, and from time to time, without payment, attach or cause to be attached to any part of the piers or works spars and other apparatus for saving life, and may also,



[3 & 4 GEO. 5.] *Broadstairs and St. Peter's Urban* [Ch. lxiii.]  
*District Council Act, 1913.*

either in course of using or of exercising the apparatus for saving life, A.D. 1913.  
fire rockets over the harbour, piers and works.

24. The Commissioners shall have the appointment of meters and Meters and  
weighers on or in connection with the harbour, piers and works. weighers.

26. Nothing in this Order shall entitle any person with any vessel Restrictions  
or boat to ship or unship at the piers or works any sheep, cattle or on the use of  
merchandise or to ship or unship there anything which, in the judgment works.  
of the Commissioners might in any manner interfere with the use of  
the piers or works for recreation or for the embarking or landing of  
passengers.

27. The piers and works shall, in respect of all matters, crimes or Works to be  
offences, arising or committed thereon, requiring the cognizance of any deemed  
Justices of the Peace, be deemed and taken to be within the same within the  
jurisdiction as that part of the shore with which they immediately contiguous  
communicate. jurisdiction.

33. This Order may be cited as the Broadstairs Pier Order, 1882. Short title.

---

Printed by EYRE and SPOTTISWOODE, Ltd.,

FOR

FREDERICK ATTERBURY, Esq., C.B., the King's Printer of Acts of Parliament.

---

And to be purchased, either directly or through any Bookseller, from

WYMAN AND SONS, LTD., 29, BREAMS BUILDINGS, FETTER LANE, E.C., and  
54, ST. MARY STREET, CARDIFF; or

H.M. STATIONERY OFFICE (SCOTTISH BRANCH), 23, FORTH STREET, EDINBURGH; or

E. PONSONBY, LTD., 116, GRAFTON STREET, DUBLIN;

or from the Agencies in the British Colonies and Dependencies,  
the United States of America, the Continent of Europe and Abroad of

T. FISHER UNWIN. LONDON, W.C.



